

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30					1. REQUISITION NUMBER N/A		PAGE 1 OF 64			
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 12363N22Q4055		6. SOLICITATION ISSUE DATE November 7, 2022		
7. FOR SOLICITATION INFORMATION, CONTACT:		a. NAME Matt Daigle				b. TELEPHONE NUMBER (No collect calls) 605-415-9057		8. OFFER DUE DATE-(LOCAL TIME) Open & Continuous		
9. ISSUED BY USDA Forest Service Procurement & Property Services National Stewardship Contracting Branch 1400 Independence Ave. SW, MS-1138 Washington DC 20250-1138					10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS		WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMAN-OWNED SMALL BUSINESS PROGRAM ☐ EDWOSB ☐ 8(A)		% FOR: NAICS: 115310 SIZE STANDARD: \$34 M	
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. Rating 14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP				
15. DELIVER TO USDA Forest Service Pacific Southwest Region 5 CA National Forest, Ranger District As Indicated on Each BPA Call					16. ADMINISTERED BY USDA Forest Service Pacific Southwest Region 5 CA National Forest, Ranger District As Indicated on Each BPA Call					
17A. CONTRACTOR/OFFEROR		CODE	N/A	FACILITY CODE	N/A	18a. PAYMENT WILL BE MADE BY As Indicated on Each BPA Call				
ADDRESS:		PHONE:		EMAIL:		UEI SAM:				
☐		17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☒ SEE ADDENDUM				
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES				21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT		
	PACIFIC SOUTHWEST (PSW) STEWARDSHIP BPA MULTIPLE NATIONAL FORESTS IN REGION 5 CA Angeles, Cleveland, Eldorado, Inyo, Klamath, Lassen, LTBMU, Los Padres, Mendocino, Modoc, Plumas, San Bernardino, Sequoia, Shasta-Trinity, Sierra, Six Rivers, Stanislaus, and Tahoe BPA Awards under this solicitation will be made through issuance of multiple Blanket Purchase Agreements. PERIOD OF PERFORMANCE: 10 YEARS FROM DATE OF AWARD						See attached Schedule of Items on Pages 3-9 for each National Forest			
25. ACCOUNTING AND APPROPRIATION DATA N/A							26. TOTAL AWARD AMOUNT (For Govt. Use Only) N/A			
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED ADDENDA							☒ ARE		☐ ARE NOT ATTACHED	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA							☐ ARE		☐ ARE NOT ATTACHED	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 Copy via EMAIL to Mark.Phillipp@usda.gov and matthew.daigle@usda.gov. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.							☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS _____			
30a. SIGNATURE OF OFFEROR/CONTRACTOR					31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)					
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)			31c. DATE SIGNED		
					Mark T. Phillipp					

AMENDMENT 002

PREVIOUS EDITION IS NOT USABLE

Prescribed by GSA - FAR (48 CFR) 53.212

Instructions and Work Description for Pay Items/Work Activities:

Please respond fully to the solicitation requirements (e.g., commercial pricing, certifications and representations, and selection criteria). **All pay items for a given National Forest or group of National Forests, as identified in the Standard Form (SF) 1449, must be priced in order to be considered for award for that Forest(s) - for example: Items 2-12, 15-25, 30-40, 45-55, etc. Only provide pricing for those National Forests with which you are interested in doing business. If you provided pricing for a National Forest previously, only provide pricing for Forests you want to add to your current award.** Proposals with incomplete pricing by forest will be considered non-responsive and will not qualify for award.

The rates your firm proposes shall be commercial “shelf” rates that will be used for award evaluation purposes. Contractors are cautioned that as awards of a Blanket Purchase Agreements are based, in part, on the pricing proposed herein, subsequent contractor quotes for specific unit BPA calls must be representative and reflective of those rates or they shall be removed from the pool of contractors for that Forest. Therefore, it is imperative that each Contractor provide the Government with their best commercial rate for each activity and that those rates be similar to the quotes on individual BPA calls submitted for specific projects in the future.

The Schedule of Items is reflective of the most common Stewardship type activities that will be included in Call Orders. The Schedule of Items is not all-inclusive and any forest restoration-based activity for End-Result Stewardship Contracting may be included in individual Call Orders.

This BPA will allow for future Call Orders that include:

- 1) Integrated Resource Service Contract (IRSC) with required timber product removal.**
- 2) Service-based IRSC that includes the option for Timber Subject to Agreement products to be removed when there is no required timber product removal.**
- 3) Service contract in which no timber product removal is included.**

See Appendix A for work item specifications to assist with pricing. Appendix A provides descriptions for all work items listed in the Schedule of Items. Please note that these are descriptions only of representative treatment types and are not actual treatment areas on the ground. Those specific, on-the-ground activities will be issued in future Call Orders with project specific descriptions and units on the ground available for viewing.

Appendix B provides timber removal specifications for Included Timber. Therefore, this appendix will only be included when there is required product removal or the potential for removal through Timber Subject to Agreement (IRSC), in future Call Orders. Two Appendix Bs are included in this solicitation package to demonstrate the common clauses associated with each type of sale - Tree Measurement and Scaled. This is not an all-inclusive list of clauses but rather the most common clauses utilized for that sale type. Clauses will be more in depth and project-specific in the individual future Call Orders.

See Appendix C for Road Maintenance specifications to assist in pricing for Pre/During/Post Haul Road Maintenance.

Road Reconstruction and Construction are within scope of this project; however, pricing is not required. Individual Call Orders will address this type of work, if included.

See Section 54 of this Solicitation on Page 61 for instructions on the submission of proposals in addition to the proposal requirements.

AMENDMENT 002

1. SCHEDULE OF ITEMS:

ALL STEWARDSHIP ACTIVITIES FOR EACH NATIONAL FOREST OF INTEREST MUST BE PRICED IN ORDER FOR A CONTRACTOR TO BE CONSIDERED FOR AWARD.

ITEM NO.	SCHEDULE OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1	Commercial Harvest and Removal of Included Timber – All Forests	300	AC		
	PLUMAS NATIONAL FOREST				
2	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
3	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
4	Cut, Skid and Remove Biomass	200	AC	\$	\$
5	Masticate/Chip Non-included Material	200	AC	\$	\$
6	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
7	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
8	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
9	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
10	Removal of Piled Material	200	AC	\$	\$
11	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
12	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	LASSEN NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
15	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
16	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
17	Cut, Skid and Remove Biomass	200	AC	\$	\$
18	Masticate/Chip Non-included Material	200	AC	\$	\$
19	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
20	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
21	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
22	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
23	Removal of Piled Material	200	AC	\$	\$
24	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
25	Road (Re)Construction per Call Order Specifications	NA	MI		

AMENDMENT 002

ITEM NO.	MODOC NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
30	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
31	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
32	Cut, Skid and Remove Biomass	200	AC	\$	\$
33	Masticate/Chip Non-included Material	200	AC	\$	\$
34	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
35	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
36	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
37	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
38	Removal of Piled Material	200	AC	\$	\$
39	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
40	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	TAHOE NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
45	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
46	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
47	Cut, Skid and Remove Biomass	200	AC	\$	\$
48	Masticate/Chip Non-included Material	200	AC	\$	\$
49	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
50	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
51	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
52	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
53	Removal of Piled Material	200	AC	\$	\$
54	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
55	Road (Re)Construction per Call Order Specifications	NA	MI		

AMENDMENT 002

ITEM NO.	LAKE TAHOE BASIN MANAGEMENT UNIT	QUANTITY	UNIT	UNIT PRICE	AMOUNT
60	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
61	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
62	Cut, Skid and Remove Biomass	200	AC	\$	\$
63	Masticate/Chip Non-included Material	200	AC	\$	\$
64	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
65	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
66	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
67	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
68	Removal of Piled Material	200	AC	\$	\$
69	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
70	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	ELDORADO NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
75	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
76	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
77	Cut, Skid and Remove Biomass	200	AC	\$	\$
78	Masticate/Chip Non-included Material	200	AC	\$	\$
79	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
80	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
81	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
82	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
83	Removal of Piled Material	200	AC	\$	\$
84	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
85	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	STANISLAUS NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
90	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
91	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
92	Cut, Skid and Remove Biomass	200	AC	\$	\$
93	Masticate/Chip Non-included Material	200	AC	\$	\$
94	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
95	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
96	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
97	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
98	Removal of Piled Material	200	AC	\$	\$
99	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
100	Road (Re)Construction per Call Order Specifications	NA	MI		

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ITEM NO.	SIERRA NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
105	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
106	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
107	Cut, Skid and Remove Biomass	200	AC	\$	\$
108	Masticate/Chip Non-included Material	200	AC	\$	\$
109	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
110	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
111	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
112	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
113	Removal of Piled Material	200	AC	\$	\$
114	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
115	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	INYO NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
120	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
121	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
122	Cut, Skid and Remove Biomass	200	AC	\$	\$
123	Masticate/Chip Non-included Material	200	AC	\$	\$
124	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
125	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
126	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
127	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
128	Removal of Piled Material	200	AC	\$	\$
129	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
130	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	SEQUOIA NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
135	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
136	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
137	Cut, Skid and Remove Biomass	200	AC	\$	\$
138	Masticate/Chip Non-included Material	200	AC	\$	\$
139	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
140	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
141	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
142	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
143	Removal of Piled Material	200	AC	\$	\$
144	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
145	Road (Re)Construction per Call Order Specifications	NA	MI		

AMENDMENT 002

ITEM NO.	KLAMATH NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
150	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
151	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
152	Cut, Skid and Remove Biomass	200	AC	\$	\$
153	Masticate/Chip Non-included Material	200	AC	\$	\$
154	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
155	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
156	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
157	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
158	Removal of Piled Material	200	AC	\$	\$
159	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
160	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	SHASTA-TRINITY NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
165	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
166	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
167	Cut, Skid and Remove Biomass	200	AC	\$	\$
168	Masticate/Chip Non-included Material	200	AC	\$	\$
169	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
170	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
171	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
172	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
173	Removal of Piled Material	200	AC	\$	\$
174	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
175	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	SIX RIVERS NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
180	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
181	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
182	Cut, Skid and Remove Biomass	200	AC	\$	\$
183	Masticate/Chip Non-included Material	200	AC	\$	\$
184	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
185	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
186	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
187	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
188	Removal of Piled Material	200	AC	\$	\$
189	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
190	Road (Re)Construction per Call Order Specifications	NA	MI		

AMENDMENT 002

ITEM NO.	MENDOCINO NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
195	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
196	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
197	Cut, Skid and Remove Biomass	200	AC	\$	\$
198	Masticate/Chip Non-included Material	200	AC	\$	\$
199	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
200	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
201	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
202	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
203	Removal of Piled Material	200	AC	\$	\$
204	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
205	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	ANGELES NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
206	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
207	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
208	Cut, Skid and Remove Biomass	200	AC	\$	\$
209	Masticate/Chip Non-included Material	200	AC	\$	\$
210	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
211	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
212	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
213	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
214	Removal of Piled Material	200	AC	\$	\$
215	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
216	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	CLEVELAND NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
217	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
218	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
219	Cut, Skid and Remove Biomass	200	AC	\$	\$
220	Masticate/Chip Non-included Material	200	AC	\$	\$
221	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
222	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
223	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
224	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
225	Removal of Piled Material	200	AC	\$	\$
226	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
227	Road (Re)Construction per Call Order Specifications	NA	MI		

AMENDMENT 002

ITEM NO.	LOS PADRES NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
228	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
229	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
230	Cut, Skid and Remove Biomass	200	AC	\$	\$
231	Masticate/Chip Non-included Material	200	AC	\$	\$
232	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
233	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
234	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
235	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
236	Removal of Piled Material	200	AC	\$	\$
237	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
238	Road (Re)Construction per Call Order Specifications	NA	MI		
ITEM NO.	SAN BERNARDINO NATIONAL FOREST	QUANTITY	UNIT	UNIT PRICE	AMOUNT
239	Cut, Skid, and Remove Non-sawtimber	300	AC	\$	\$
240	Cut, Skid and Deck Non-sawtimber	300	AC	\$	\$
241	Cut, Skid and Remove Biomass	200	AC	\$	\$
242	Masticate/Chip Non-included Material	200	AC	\$	\$
243	Mechanical Cutting and Piling Non-included Material	200	AC	\$	\$
244	Mechanical Cutting and Lopping Non-included Material	200	AC	\$	\$
245	Hand Cutting and Piling Non-included Material	200	AC	\$	\$
246	Hand Cutting and Lopping Non-included Material	200	AC	\$	\$
247	Removal of Piled Material	200	AC	\$	\$
248	Road Maintenance (Pre, During, Post)	10	MI	\$	\$
249	Road (Re)Construction per Call Order Specifications	NA	MI		

For the purposes of pricing Items 2 through 249 above, consider no timber product value being traded.

HOWEVER, under BPA Calls for Stewardship activities, timber product value **will** be used to off-set service costs, when included.

See Appendix A for Service Work Specifications, Appendix B for Timber specifications, and Appendix C for Road Maintenance specifications to assist in pricing.

****This BPA will issue future Call Orders that will either (1) include required timber product removal (IRSC), OR (2) includes the option for Timber Subject to Agreement (Service-based IRSC), OR (3) Service work only, in which no timber product removal is included (Service contract).****

SPECIES	PRODUCT	QUANTITY	UNIT OF MEASURE	Minimum Acceptable Offer
N/A*	N/A*	N/A*	N/A*	N/A*

BPA Calls will have project-specific species, products, quantities, and units of measure with minimum acceptable rates.

Units of Measure will vary, and values of timber products removed will be applied at Fixed Rates.

AMENDMENT 002

2. LAND MANAGEMENT ACTIVITIES.

The Forest Service is executing this procurement under the stewardship contracting authority provided under Section 8205 of Public Law 113-79, the Agricultural Act of 2014 as amended under Section 204 & 207 of the Consolidated Appropriations Act (Omnibus Bill 2018). Stewardship authority grants the Forest Service Chief or designee the authority to aggregate contractual requirements into stewardship projects and solicit those requirements utilizing full and open competition

Performance of land management activities shall be in accordance with Project Description and Work Specifications. Payment for Land Management Work Activities in **Schedule of Items** will be made in Stewardship Credits and Appropriated Funds.

All Base Work Activities (Mandatory) shall be performed. Optional activities are listed in order of planned priority. Award may be made for optional items in any order that the Contracting Officer determines is in the best interest of the Government.

3. FAR 52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)

(a) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item unless the change is due to the defect in the item.

(b) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act ([31 U.S.C. 3727](#)). However, when a third party makes payment (e.g., use of the Government wide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) Disputes. This contract is subject to [41 U.S.C. chapter 71](#), Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) [52.233-1](#), Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) Definitions. The clause at FAR [52.202-1](#), Definitions, is incorporated herein by reference.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice. (Using IPP now) See #44.

AMENDMENT 002

(1) The Contractor shall submit an original invoice and three copies (*or electronic invoice*, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

- (i) Name and address of the Contractor;
- (ii) Invoice date and number;
- (iii) Contract number, line-item number and, if applicable, the order number;
- (iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;
- (v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;
- (vi) Terms of any discount for prompt payment offered;
- (vii) Name and address of official to whom payment is to be sent;
- (viii) Name, title, and phone number of person to notify in event of defective invoice; and
- (ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.
- (x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management, or [52.232-34](#), Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act ([31 U.S.C.3903](#)) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment. -

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C.3903](#)) and prompt payment regulations at 5 CFR Part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see [52.212-5\(b\)](#) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

- (A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);
- (B) Affected contract number and delivery order number, if applicable;
- (C) Affected line item or subline item, if applicable; and
- (D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

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(6) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in [41 U.S.C. 7109](#), which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by [33.211](#) if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see [32.607-2](#)).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on–

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR [32.608-2](#) in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for

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supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Other compliances. The Contractor shall comply with all applicable Federal, State, and local laws, executive orders, rules, and regulations applicable to its performance under this contract.

(r) Compliance with laws unique to Government contracts. The Contractor agrees to comply with [31 U.S.C. 1352](#) relating to limitations on the use of appropriated funds to influence certain Federal contracts; [18 U.S.C. 431](#) relating to officials not to benefit; [40 U.S.C. chapter 37](#), Contract Work Hours and Safety Standards; [41 U.S.C. chapter 87](#), Kickbacks; [41 U.S.C. 4712](#) and [10 U.S.C. 2409](#) relating to whistleblower protections; [49 U.S.C. 40118](#), Fly American; and [41 U.S.C. chapter 21](#) relating to procurement integrity.

(s) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at [52.212-5](#).

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The [Standard Form 1449](#).

(8) Other documents, exhibits, and attachments.

(9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations.

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

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ADDENDUM TO FAR 52.212-4The following clauses are hereby incorporated by reference or full text as appropriate:

NUMBER	TITLE	DATE
52.236-2	DIFFERING SITE CONDITIONS	APR 1984
52.236-3	SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK	APR 1984
52.236-5	MATERIAL AND WORKMANSHIP	APR 1984
52.236-6	SUPERINTENDENCE BY THE CONTRACTOR	APR 1984
52.236-7	PERMITS AND RESPONSIBILITIES	NOV 1991
52.236-8	OTHER CONTRACTS	APR 1984
52.236-9	PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS	APR 1984
52.236-10	OPERATIONS AND STORAGE AREAS	APR 1984
52.236-11	USE AND POSSESSION PRIOR TO COMPLETION	APR 1984
52.236-12	CLEANING UP	APR 1984
52.236-13	ACCIDENT PREVENTION (ALTERNATE I)	NOV 1991
52.236-17	LAYOUT OF WORK	APR 1984
52.236-21	SPECIFICATIONS AND DRAWINGS FOR CONSTRUCTION	FEB 1997
52.236-26	PRECONSTRUCTION CONFERENCE	FEB 1995
52.242-14	SUSPENSION OF WORK	APR 1984
52.246-12	INSPECTION OF CONSTRUCTION	AUG 1996

4. PROJECT DESCRIPTION

- (a) Description of Work – This solicitation and any resultant Blanket Purchase Agreements are a stewardship project in accordance with 2018 Omnibus and Farm Bill. This is a commercial item acquisition that has been tailored to include fitting the Government’s method of trading goods for services in Stewardship instruments. Work activities include commercial and non-commercial thinning, hand thinning and piling, grapple piling, mastication of fuels, biomass utilization, and road maintenance.
- (b) Description of Conditions –
- Commercial harvest of live tree (non-salvage) conifer species including but not limited to: Ponderosa pine, Sugar pine, Douglas-fir, Incense cedar, Lodgepole pine, and White fir or any combination thereof. Average stand will range between 15 tons – 45 tons sawtimber per acre, with average sawtimber diameter between 10 – 18 inches DBH.
 - All harvest operations are ground based on slopes of generally less than 35% with skidding on a variety of terrain. Maximum skid distances are typically not more than 1800 feet.
 - Non-sawtimber removal may include any or all species listed above and may include material greater than 3.0 inches DBH up to the minimum sawtimber diameter specifications.
 - Non-included material is any conifer species and/or size that is not included in Appendix B, Division A Utilization Standards.
 - Removal of Piled material may occur on landings along open roadways and temporary roads.
 - Normal Operating Season will vary between forests and districts based on geographic location.

General Guidelines:

This BPA will issue future calls for individual Hazardous Fuels and Restoration project areas located on National Forest Lands. The scope covers Federal and local agency lands within the boundaries of Angeles, Cleveland, Eldorado, Inyo, Klamath, Lassen, LTBMU, Los Padres, Mendocino, Modoc, Plumas,

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San Bernardino, Sequoia, Shasta-Trinity, Sierra, Six Rivers, Stanislaus, and Tahoe National Forests. Work may also be accomplished on private lands, but the BPA call will be issued and administered by a government entity.

The overall objectives of the project are:

1. Improve and protect:

- a. The vitality and resiliency of forest and range ecosystems to threats from fire, insect, disease, and invasive and noxious species, including maintaining soil productivity and the use of prescribed fire or vegetation removal to promote healthy forests and rangelands;
- b. Water resources including watershed health and productivity, water quantity and quality;
- c. Habitat for wildlife and fish;
- d. Air quality, including minimizing air quality impacts by removing excess biomass before the introduction of fire; and
- e. The commercial value of forest biomass for producing electric energy and other beneficial uses.

2. Reduce:

- a. Hazardous forest fuels on federal lands;
- b. Fire hazards to private lands, at-risk communities, municipal water supplies; and other improvements
- c. Threat of catastrophic fire to T&E species habitat; and
- d. Effects of insect & disease epidemic; and
- e. Prevalence of noxious and exotic plants and promote reestablishment of native species.

3. Resulting Award: BPA calls will be issued against any resultant Blanket Purchase Agreements and reference the parent Blanket Purchase Agreement when ordered by warranted contracting personnel from any Federal, State, County, or Local agency within 150 miles of the boundaries of the Angeles, Cleveland, Eldorado, Inyo, Klamath, Lassen, LTBMU, Los Padres, Mendocino, Modoc, Plumas, San Bernardino, Sequoia, Shasta-Trinity, Sierra, Six Rivers, Stanislaus, and Tahoe National Forests.

1. Additionally, any Stewardship IRSC contract will include an Appendix A for service work specifications, Appendix B for the removal of timber products, Appendix C for associated road maintenance and Appendix D, if applicable, for road construction/reconstruction. Stewardship service contracts will only include an Appendix A for service work specifications

5. SPECIFICATIONS

General specifications for each Contract Activity individually described by an item number in the Schedule of Service Items can be found in Appendix A (note: specifications may change at time of BPA call creation). Specifications for timber removal can be found in Appendix B and associated road plans and specifications in Appendix C for Stewardship related projects. Projects that include road construction or reconstruction will be addressed in individual Calls and may include Appendix D.

6. CONTRACTOR QUALITY CONTROL INSPECTION SYSTEM

The Contractor shall identify the quality control inspection system it will use to ensure that contract specifications will be achieved. At no time shall the contractor rely upon Government inspections to provide notification of unsatisfactory performance. The Contractor shall produce written inspection records in a format and at times and places satisfactory to the Contracting Officer. Inspection records shall be made available upon request of the Contracting Officer and be maintained until the date of contract closure. The Contracting

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Officer may observe the Contractor's inspection at any time and shall otherwise have unlimited access to the inspection data.

7. ACCEPTANCE

The Forest Service shall perform an inspection upon Contractor's written request and assurance that work has been completed. Request shall be for a reasonable portion of work. Acceptance may be made for all or portions of work. Actual acceptance will adhere to the requirements in each BPA call.

8. GOVERNMENT QUALITY ASSURANCE SURVEILLANCE PLAN

Quality assurance plans specific to individual items will be found in Appendix A or provided at time of BPA call issuance.

9. FAR 52.211-10 COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract within **ten (10) calendar days** after receipt of Notice to Proceed or Order for specific work items, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than as the date specified on each BPA call. The time stated for completion shall include final cleanup of the premises.

10. PERIOD OF PERFORMANCE

The period of performance of these Blanket Purchase Agreements is **ten (10) years from date of contract award, with option to extend up to 20 years.**

11. CALL ORDER ISSUANCE

Call Orders may extend up to **2 years** past the expiration of the BPA.

12. ORDERING

- (a) Any services to be furnished under this agreement shall be ordered by issuance of BPA call orders by the individuals or activities designated in the Schedule. Such call orders may be issued from **date of award** and **have a period of performance up to two years after expiration of the BPA**. The BPA shall remain until either party to the BPA determines that it is no longer beneficial or effective during the performance period. Should the Government make this determination, a cancellation notice shall be provided to the vendor. Should the vendor make the determination, they shall provide written notice to the Government of their intent to cancel the BPA. Cancellation of the BPA will not affect the obligations of either party regarding outstanding call orders which have not been closed out.
- (b) All BPA calls are subject to the terms and conditions of this agreement. In the event of conflict between a call order and this agreement, the signed agreement shall control.
- (c) When emailed, a BPA call is considered "issued" when the Government sends the order via email. BPA calls may be issued by mail, orally, by facsimile, or by electronic commerce methods.
- (d) With the exception of those projects determined to be non-commercial services, all call orders placed under this blanket purchase agreement shall fall under FAR 13.5. For those projects determined to be commercial services, the maximum call order amount shall be established in FAR 13.303-5 (b)2 as acquired under subpart FAR 13.5.

13. ORDER PROCEDURES (MULTIPLE AWARD)

The following provision defines the process by which (1) Fair Opportunity for Award will be afforded; (2) BPA calls will be processed and priced; and (3) BPA calls will be awarded.

(a) Fair Opportunity for Consideration:

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1. One or more BPA calls will be issued during the performance period of the resulting Blanket Purchase Agreements. The Contracting Officer's (CO) decision to issue a BPA call to a particular awardee shall be based on the criteria stated below. The CO will give each qualifying (Business Status) awardee a "fair opportunity" to be considered for each order in excess of \$2,500 unless one of the conditions in paragraph (2) below applies.
2. Exceptions to Fair Opportunity for Consideration: Awardees will not be given a fair opportunity to be considered for requirements which are expected to exceed \$2,500 when the Contracting Officer determines one of the following conditions apply:
 - A. *The agency need for the services is so urgent that providing such opportunity would result in unacceptable delays;*
 - B. *Agency Cooperators provision of matching value under Stewardship Activities.*
 - C. *Only one such awardee is capable of providing such services required at the level of quality required because the services ordered are unique or highly specialized; or*
 - D. *The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given fair opportunity to be considered for the original order.*

(b) Selection Criteria for Awarding a BPA call

The Government will evaluate the BPA call proposals against selection criteria. At a minimum, the Government's award decision will be based on selection criteria addressing key personnel, equipment, relative past performance, local community, and price.

Evaluation of relevant past performance will be based on each awardee's original past performance data as supplemented by the Government and contractor during the life of the Agreement. As work proceeds under this Agreement, it is probable that the relevant past performance data submitted with the original Agreement solicitation proposal will be disregarded for current performance reports received on BPA calls performed under an Agreement. In addition, individual BPA call selection criteria may include other factor(s) relevant to the particular call. The order of importance for the factors will be identified on each individual project call.

(c) BPA call quote process

1. A warranted Contracting Officer, regardless of Agency, responsible for acquisitions within the area defined in the Scope of Work must issue any BPA call exceeding \$2,500. The Contracting Officer will issue a BPA call Quote Request to all contractors unless the work is specifically set aside for sole source under stewardship when a cooperating partner is providing added value for that specific project unit. If a Fair Opportunity Exception Applies, the BPA call quote request will be issued to the designated group or single contractor, as applicable. The BPA call quote request will include a due date for quote/proposal submission and a Statement of Work (SOW) which includes a detailed description of work to be accomplished, a listing of the deliverables required, and additional data as appropriate. The BPA call quote request will also include specific instructions for the submission of offers, the selection criteria factors, the factors' order of importance, and other information deemed appropriate.
2. Awardees under their Blanket Purchase Agreement will generally be allowed **thirty (30) working days** to prepare and submit quotes or proposals. However, more, or less time may be necessary based on the requirements. The due date shall be set forth in each BPA call quote request. While no mandatory requirement exists for the submission of a proposal/quote, firms consistently declining to submit offers for availability reasons may jeopardize their ability to receive future BPA calls.
3. Technical Proposals. A BPA call request for quotes or proposals **MAY** include the demand for any or all of the following information depending upon the complexity of the project:

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- * Technical Approach (Including Operating Plan, Benefit to Local Community, and Biomass Utilization)
- * Key Personnel utilized
- * Quality control plan
- * Quantities/hours of personnel by labor categories
- * Quantities/hours of equipment by specific type
- * Other Direct Costs (ODCs) (e.g., material not provided by the Government, mobilization, etc.)
- * Site Specific augmentation to the Formal Letter of Agreement's Safety Plan
- * Performance Work Plan Schedule
- * Use of Government Property
- * Necessary flagging requirements
- * Teaming Arrangement to include subcontracting from the list of approved subcontractors established at time of award

Technical proposal information will be streamlined to no more than five (5) pages; excluding any Safety Plan augmentation and the Performance Work Plan Schedule. Proposals shall not merely restate the BPA call's work statement requirements or Statement of Work.

4. Price Quotes. A written price quote will always be required on the face of each BPA call form. Completing the form with an authorized signature will, in most cases, represent the sum of a firm's price quote. Pricing will only be provided to the Contracting Officer.

5. Clarification of Offer: Quotes/Proposals will be evaluated in accordance with selection criteria set forth in the BPA calls Request for Quotes. If necessary, during the evaluation of quotes/proposals the Government may contact an agreement holder with questions concerning their quote/proposal. Upon completion of evaluations, the CO will issue a BPA call to the awardee whose proposal is most advantageous to the Government.

6. BPA call Issuance: Calls may be issued verbally, by facsimile, or by electronic commerce methods. However, all calls must be finalized in writing and provided to the Contracting Officer with the appropriate signatures and agreed upon pricing for stated pay items.

7. Unauthorized Work: The Contractor is not authorized to commence performance prior to issuance of a signed BPA call and Notice to Proceed or verbal approval provided by the CO to begin work.

8. BPA call Funding Restrictions: No unfunded calls are authorized under this Agreement.

9. The acceptance of a contractor's quote/proposal by Contracting Officer and any subsequent issuance of a signed BPA call makes said call a binding contract.

14. SCHEDULES AND REPORTS

Pursuant to contract requirements, the following submittals are required within 10 days after issuance of a Notice to Proceed or BPA call for review and/or approval, unless stated elsewhere in the specifications or otherwise mutually agreed:

ITEM DESCRIPTION
Proposed progress schedule showing starting and completion dates of various phases of the work.
List of proposed sub-contractors and their intended work. Sub-contractors must have Contracting Officer's written approval prior to starting work on the project.
Traffic Control Plan
Soil Erosion and Water Pollution Control Plan

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Designation of Contractor personnel describing responsibilities and authorities

All schedules and reports shall be submitted to the **COR identified in the BPA call**.

15. PAYMENT

It is anticipated that funds will be exchanged in the performance of this contract because the value of the timber will not completely offset the value of the work to be performed. When payment is made to the contractor for work performed, it will be made in accordance with the specifications set forth in each individual BPA call under Measurable Performance Standards.

The value of work completed, and timber removed will be documented in an Integrated Resource Statement of Account produced by Forest Products Financial System (FPFS) monthly when harvesting operations are underway.

16. STEWARDSHIP CREDITS

Stewardship Credits are credits that are earned and established when work listed in the Schedule of Supplies/ Services has been performed and accepted. Stewardship credits shall be earned at the rate as shown in the Schedule. Earned credits may be used to pay for timber value included in Schedule of Items. Unless otherwise indicated in the Schedules, credits will be earned based upon Actual Quantities accomplished and accepted.

17. ESTABLISHMENT OF STEWARDSHIP CREDITS

Notwithstanding references to payments in "Payment" clauses or provisions of this contract, payment for Stewardship Activities will be made with Stewardship Credits as indicated in the award document.

Stewardship Credits will be established on a monthly basis. Stewardship credits will be established for the number of units of each activity that have been completed and accepted. Acceptance may be for all, or a reasonable portion of, any specific activity.

Stewardship credits will not be established for work that is in progress that has not been accepted by the Forest Service.

18. TIMBER PAYMENT GUARANTEE

(1) General—(a) To guarantee payment for timber scheduled for removal under the IRSC, Contractor may earn Stewardship Credits in advance of removal, or provide a Timber Payment Guarantee in the form of an acceptable surety payment bond, cash payment, or a deposit in a Federal Depository negotiable security of the United States.

(b) Any earned Stewardship Credits and alternate Timber Payment Guarantee together will maintain a minimum unobligated balance equal to the applicable charges for timber the Forest Service estimates will be cut in sixty (60) calendar days plus the value of any outstanding charges, or equal to the total value of the timber that has not been paid for.

(c) Securities shall be deposited through the Contracting Officer accompanied by a power of attorney and agreement authorizing the bond-approving officer to sell or collect such securities if payment is not made within 15 days of billing by Forest Service. The penal sum of such surety bond or the market value at time of deposit of such negotiable securities shall be the maximum amount of the payment guaranteed.

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(2) A Timber Payment Guarantee for a single contract shall be provided utilizing FS Form 6500-12.

(3) Blanket Surety Bond — (a) Contractor may furnish an acceptable bond, or deposits securities, to guarantee payment for timber from multiple contracts. Contractor shall not start cutting hereunder until this contract receives an allocation that will meet the obligation for payment guarantee.

(b) The amount of such bond or deposited securities shall be allocated to such contracts by the Forest Service. The Contractor will provide the contact information for the Forest Service representative administering the Blanket Surety Bond.

(c) When there is to be no timber cutting hereunder for 30 days or more and payment of current charges has been made, the allocation to this contract shall be reallocated to other contracts at Contractor's request.

(d) A Timber Payment Guarantee for multiple contracts (Blanket Guarantee) shall be provided utilizing FS Form 6500-12a.

(4) Letters of Credit for Payment Bond—Contractor may use letters of credit in lieu of a surety bond for payment bond purposes when approved by Contracting Officer.

19. EXCESS STEWARDSHIP CREDITS

In the event there are excess (unused) established Stewardship Credits when all of the included timber has been cut and removed the Forest Service, at its option, shall either add more timber or make cash payment for the unused credits.

20. EXCESS TIMBER VALUE

In the event the value of the included timber exceeds the total value of all of the mandatory activities plus the ordered Optional activities, the Contractor shall make cash payment for the excess timber value.

21. REFUND OF EXCESS CASH

If at any time the credit balance of the Integrated Resource Statement of Account exceeds the charges for timber removed to date and for timber that the Forest Service estimates will be cut within the next sixty (60) calendar days, any portion of such excess from cash in the account shall be refunded if requested by Contractor. If no cutting is planned within the next sixty (60) calendar days, refund of the entire unencumbered cash balance may be made. After a refund, deposits shall be made to meet the requirements of the clause entitled, "TIMBER PAYMENT GUARANTEE" before additional timber may be cut.

22. FINAL PAYMENT - RELEASE OF CLAIMS

The Government shall pay the amount due the Contractor under this contract after—

- (1) Completion and acceptance of all work;
- (2) Presentation of a properly executed voucher; and
- (3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release.

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23. POST AWARD CONFERENCE

A post award conference with the successful offeror is required. It will be scheduled within **10** days after the date of contract award. The conference will be held at **a location designated in the award letter and as specified in each BPA Call.**

24. PHYSICAL DATA

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of, or conclusion drawn from the data or information by the Contractor.

- (a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by visual observation.
- (b) Additional informational material made available to contractors including but not limited to environmental documentation, timber cruise data, timber removal report and appraisal, maps, access permits, etc.

25. USE OF PREMISES

Before any camp, quarry, borrow pit, storage, detour, or bypass site, other than shown on the drawings, is opened, or operated on USDA land or lands administered by the USDA, the Contractor shall obtain written permission from the Contracting Officer. A camp is interpreted to include a campsite or trailer parking area of any employee working on the project for the Contractor. (b) Unless excepted elsewhere in the contract, the Contractor shall (i) provide and maintain sanitation facilities for the work force at the site and (i) dispose of solid waste in accordance with applicable Federal, State, and local regulations.

The Contractor shall comply with the regulations governing the operation of premises which are occupied and shall perform his contract in such a manner as not to interrupt or interfere with the conduct of Government business.

Before any camp is opened or operated on National Forest land or lands administered by the Forest Service, written permission shall be obtained through the Contracting Officer. A camp is interpreted to include the camp site or trailer parking area of any employee working on the project for the Contractor. Such permission, if granted, will be without charge to the Contractor.

The Contractor shall request permission (in writing) from the appropriate Ranger District to use campsites. If permission is granted, the District Ranger's letter shall specify all conditions and requirements.

It is further stipulated that in addition to clean-up of any camp sites, the Contractor is required to remove all his equipment from National Forest land before final acceptance and payment of the project.

Portable chemical toilets, self-contained holding tanks, approved pit or vault toilets which meet State Code are required.

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26. KEY PERSONNEL

(a) The Contractor shall assign to this contract the following key personnel:

Overall Project Manager

Logging Supervisor

Fuels Treatment Supervisor (for non-commercial activities)

Individual Sub-Managers – Individuals supervising individual sub-contracts for work items not covered by personnel noted previously herein.

(b) During the first ninety (90) days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within fifteen calendar days after the occurrence of any of these events and provide the information required by paragraph (c) below. After the initial 90-day period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least 15 days prior to making any permanent substitutions.

(c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes should have comparable qualifications to those of the persons being replaced. The Contracting Officer will notify the Contractor within fifteen calendar days after receipt of all required information of the decision on substitutions. The contract will be modified to reflect any approved changes of key personnel.

27. EMPLOYMENT OF ELIGIBLE WORKERS

This contract is subject to the Agricultural Worker Protection Act (MSPA), 29 United States Code (U.S.C) 1801-1872, and to the U.S. Department of Labor (DOL) regulations implementing MSPA 29 Code of Federal Regulations (CFR) Part 500. MSPA eliminates activities detrimental to migrant and seasonal agricultural workers, requires registration of Farm Labor Contractors, and ensures necessary protection for the workers. Information regarding MSPA can be found at <http://www.dol.gov/whd/mspa/index.htm>.

If workers are hired under the H-2B program, (8 CFR Section 274A provisions of the Immigration and Nationality Act (INA) for the admission of nonimmigrants to the U.S. to perform temporary labor or services) a Temporary Employment Certification issued by the Office of Foreign Labor Certification (OFLC) in the Department of Labor Employment and Training Administration is required. For further information on the requirements of the H-2B program, visit OFLC's website at <http://www.foreignlaborcert.doleta.gov/> or Wage and Hour's website at <http://www.dol.gov/whd/immigration/H2BFinalRule/index.htm>.

Compliance with MSPA and the INA is a material condition of this contract. If the contractor employs any unauthorized worker(s) during the performance of this contract that violates section 274A of the INA, the Government may terminate the contract, in addition to other remedies or penalties prescribed by law.

1. Definitions

A. H-2B worker: as used in this part means a nonimmigrant holding a visa authorizing the individual to legally work in the US to perform temporary labor or services. A worker with an H-2B visa (H-2B worker) may also be considered a migrant agricultural worker under MSPA depending on the type and nature of work performed.

2. Migrant Agricultural Worker and Seasonal Agricultural Worker: as used in this part means individuals employed for agricultural (including forestry) work on a seasonal or temporary basis.

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- a) A worker, moving from one seasonal activity to another, is employed on a seasonal basis even though the worker may continue to be employed during a major portion of the year.
- b) An overnight absence from the migrant workers permanent place of residence is required.
- c) Members of the contractor's immediate family are not considered migrant or seasonal workers. Immediate family includes:
 - Spouse
 - Children, stepchildren, or foster children
 - Parents, stepparents, or foster parents, or
 - Brothers and sisters

3. Farm Labor Contractor (FLC). As used in this part means a person including an individual, partnership, association, joint stock company or a corporation, who, for any money or other valuable consideration, paid or promised to be paid, performs any recruiting, soliciting, hiring, employing, furnishing, or transporting of any migrant or seasonal agricultural worker.

4. Registration Requirements

- A. Any contractor providing or hiring H-2B nonimmigrants for work under this contract shall provide a copy of their Temporary Employment Certificate. General information about the H-2B program can be found on Fact Sheet # 78 at <http://www.dol.gov/whd/regs/compliance/whdfs78.htm>. Contractors can apply for the certificate through the US DOL Employment & Training Administration's on line iCERT Visa Portal System at <https://icert.doleta.gov/> or by paper application.
- B. Any contractor who meets the definition in (2.c.) above providing or hiring migrant or seasonal workers to perform agricultural or manual forestry work shall first obtain a Federal DOL Farm Labor Contractor Certificate of Registration (http://www.dol.gov/whd/forms/fts_wh530.htm). The contractor shall carry the certificate at all times while engaged in contract performance and shall display it upon request. Any of the contractor's employees who perform any one or more of the activities defined as an FLC in paragraph (2.c.) must have their own FLC Employee Certificate. General information about MSPA can be found on Fact Sheet #49 at DOL Wage and Hour Divisions webpage <http://www.dol.gov/whd/regs/compliance/whdfs49.htm>.

5. Certifications

The Contractor shall provide applicable H-2B Temporary Employment Certificate and/or Farm Labor Contractor Certificate as part of their representations, certifications, and acknowledgements. Subcontractor(s) meeting the definitions above shall follow the same requirements as the Prime Contractor. It is the Prime Contractor's responsibility to ensure the Subcontractor's information is provided to the Contracting Officer.

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6. Worker Protections

A. Worker Information Posters

- a) A contractor who uses the H-2B program to meet its temporary employment needs must post and maintain the H-2B poster (WH-1505) in a conspicuous location accessible to workers at the job site.
- b) The contractor shall display and maintain the MSPA poster (WH-1376) on the job site in a conspicuous location accessible to workers during the contract performance period.

B. Personal protective equipment

- a) 29 CFR 1910 Subpart I, OSHA's General Industry personal protective equipment (PPE) standard contains the general requirements for the provision of personal protective equipment and requires employers to perform a hazard assessment to select appropriate PPE for hazards that are present or likely to be present in the workplace. OSHA requires that many categories of personal protective equipment meet or be equivalent to standards developed by the American National Standards Institute (ANSI).
- b) Before a worker begins operating equipment, the contractor shall train the workers on the safe operation and use of the equipment
- c) The contractor shall provide the appropriate personal protective equipment for the work required to be performed in the contract, wherever necessary by reason of hazards or processes encountered that may cause injury or impairment in the function of any part of the body. Except for foot protection, all PPE must be provided by the employer at no cost to the employee. Includes:
 - Head Protection
 - Hearing Protection
 - Eye/Face Protection
 - Leg Protection
 - Foot Protection
 - Hand Protection
- d) PPE must be sanitary and in reliable condition. Do not use defective or damaged PPE. PPE must be inspected prior to use on each work shift to ensure it is in serviceable condition.
- e) A checklist of applicable PPE guidelines typical for the work performed under this contract is provided. This does not relieve the contractor of the responsibility of performing a risk assessment or providing the necessary PPE for their operations.

Reference <https://www.osha.gov/personal-protective-equipment> or OSHA 3151-12R 2004 Personnel Protective Equipment Booklet. The booklet can be found at <https://www.osha.gov/sites/default/files/publications/osh3151.pdf>.

- f) Manual Logging and Forestry Related activities: <https://www.osha.gov/etools/logging>
- g) General Machine and Vehicles Logging and Forestry Related activities: <https://www.osha.gov/etools/logging>

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C. Field Sanitation.

OSHA established minimum standards for field sanitation in covered agricultural settings. Refer to Fact Sheet # 51 Field Sanitation Standards under the Occupational Safety and Health Act.

7. Employment Requirements – Fact Sheets with relevant information may be found at <http://www.dol.gov/WHD/fact-sheets-index.htm>.

- A. Contractors employing workers in forestry related work are required to comply with wage and payroll standards and recordkeeping requirements. Refer to Fact Sheet #63: Application of Federal Labor Laws to Reforestation found on the DOL Wage and Hour Division webpage.
- B. Contractor Employee List. Contractors are required to maintain and provide upon request an active list of all employees performing work on the job site under this contract. The Employee List will identify employees by full name (aliases), supervisory duties if applicable, and appropriate labor Occupation Code for work performed under the Service Contract Act Wage Rates applicable to this contract. If Subcontractors are utilized, all tiers of subcontractor(s) are responsible for providing the same information for their employees to the Prime for submittal to the Contracting Officer.

8. Transportation

- A. The contractor shall be registered to transport employees unless employees provide their own transportation or carpool by their own arrangement in one of their own vehicles. Authorization for each vehicle that will be used to transport employees must appear on the contractor's certificate. If the contractor directs or requests employees to carpool, the registration requirement is applicable. Any driver, who transports workers for a fee or at the direction of the contractor, shall be registered as an FLC or an FLC employee.
- B. See Fact Sheet #50: Transportation under the MSPA, for more information about the vehicle safety standards, driver's licensing requirements, and vehicle insurance requirements. Note that separate transportation requirements may apply if there are H-2B workers.

9. Housing

- A. The authorization to furnish housing, other than commercial lodging certified by a health authority or other appropriate agency, must appear on the contractor's certificate. Contractors should contact their local Wage and Hour Division of the DOL for further information on the requirements of the Act.
- B. Camping Requirements. The Forest Service (FS) has various camping opportunities. Check with local FS unit for camping requirements, camping permits may be required. Verify local fire restriction policies. If camps will be used to house workers subject to MSPA, they are also subject to the temporary labor camp standards at 29 CFR 1910.142. The Forest Service reserves the right to terminate a camping permit at any time. These requirements are in addition to those contained in or provided for under the clause titled 452.236-72 Use of Premises in this contract. Any violation of these conditions constitutes a breach of contract and may result in revocation of camping approval.
 - 1. Every structure used as shelter must provide protection from the elements. Where adequate heat is not provided, make other arrangements to protect workers from the cold. Cut firewood only after a District Firewood Permit is obtained.
 - 2. The campsite must not encroach beyond the boundaries designated by the Forest Service. The campsite location must minimize impacts on streams, lakes, and other

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bodies of water. Camping is not permitted within developed recreational sites or along primary recreational roads.

3. The campsite must have a clean appearance at all times. Upon abandonment of any campsite, or termination, revocation, or cancellation of camping privileges, the contractor shall remove, within ten (10) calendar days, all structures, and improvements except those owned by the United States, and shall restore the site, unless otherwise agreed upon in writing or in the camping permit. Structures or improvements the contractor fails to remove within the 10-calendar day period becomes the property of the United States, however, the contractor remains liable for the cost of the removal and restoration of the site.
4. Unless otherwise designated by the CO, the use of the area is not exclusive and may be granted to other permittees, contractors, or recreating public. Disorderly conduct is not permitted.
5. Damaging or removing any natural feature or other property of the Forest Service is prohibited.
6. Servicing of equipment in the campsite is not permissible unless the campsite is within the project area.
7. Provide sanitary facilities for storing food. Provide ice chests or coolers, with ice supply made from potable water, and replenish, as necessary. Provide sufficient storage for perishable food items.
8. Provide an adequate and convenient potable water supply in each camp for drinking and cooking purposes.
9. Provide adequate toilet facilities and toilet paper for the capacity of the camp. Service and maintain facilities in a sanitary condition.
10. Collect, store, and dispose of garbage in a manner to discourage rodent access, minimize attraction of flies, and prevent scattering by wind
11. Maintain basic first aid supplies available, which must be under the charge of a person trained to administer first aid.

The basic supplies must include:

- Gauze pads (at least 4x4 inches)
 - Two large gauze pads (at least 8x10 inches)
 - Box adhesive bandages (such as band-aids)
 - One package of gauze roller bandage (at least 2-inches in width)
 - Two triangular bandages
 - Scissors
 - At least one blanket
 - Tweezers
 - Adhesive tape
 - Medical gloves, (latex or non-latex equivalent), and
 - Resuscitation device such as resuscitation bag, airway, or pocket mask.
12. Wash laundry in such a way that washing and rinsing will not pollute lakes, streams, or other flowing water.
 13. Dispose waste water away from living and eating areas and in such a way that minimizes pollution to lakes, streams, and other flowing water.

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14. The contractor shall take all reasonable precautions to prevent and suppress forest fires. Do not dispose of material by burning in open fires during the closed season established by law or regulation without the written permission from the Forest Service.
15. If authorized to have an open fire, the Contractor shall comply with the following fire regulations:
 - A shovel, axe, or Pulaski, a 10-quart pail, which is full of water for immediate use, and a fire extinguisher with an Underwriters Laboratory (UL) rating of at least 1:A 10:BC is required.
 - All fire rings or outside fireplaces must be approved by the Forest Service representative. The area must be cleared down to mineral soil for a distance of one foot outside of the ring or fireplace, and it must not have any overhanging material. Fire rings must be dismantled, and material disposed prior to leaving the site.
 - All generators and other internal combustion engines must be equipped with Forest Service approved spark arrestors and/or factory designed muffler and exhaust system in good working order. They will be located in a cleared area with the same requirements as in described in the previous paragraph.
 - All fuel must be stored in UL approved flammable storage containers and be located at least fifty (50) feet from any open flame or other source of ignition.
16. Contractors are required to provide certification of employment status as part of their representations, certifications, and acknowledgements at the time of submission of proposals/ offers/quotes.

28. PROTECTION MEASURES NEEDED FOR PLANTS, ANIMALS, CULTURAL RESOURCES, AND CAVE RESOURCES

Locations of known areas needing special measures for the protection of plants, animals, cultural resources, and/or cave resources are shown on Contract Area Map and/or identified on the ground. Special protection measures needed to protect such known areas are identified in Appendix B.

In addition to any special protection measures noted, Contractor has a general duty to protect all known and identified resources referenced in this Subsection from damage or removal during Contractor's operations. Discovery of additional areas, resources, or members of species needing special protection shall be promptly reported to the other party, and operations shall be delayed or interrupted at that location, if Contracting Officer determines there is risk of damage to such areas, resources, or species from continued operations.

Wheeled or track-laying equipment shall not be operated in areas identified as needing special measures for the protection of cultural resources, except on roads, landings, tractor roads, or approved skid trails. Unless agreed otherwise, trees will not be felled into such areas. Contractor may be required to backblade skid trails and other ground disturbed by Contractor's operations within such areas in lieu of required cross ditching.

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Contractor shall immediately notify Forest Service if disturbance occurs to any area identified as needing special protection measures and shall immediately halt operations in the vicinity of the disturbance until Forest Service authorizes Contractor to proceed. Contractor shall bear costs of resource evaluation and restoration to identified sites. Such payment shall not relieve Contractor from civil or criminal remedies otherwise provided by law.

Forest Service has exercised due diligence and followed established protocols in identifying known areas needing special protection measures. Nevertheless, nothing in this provision shall be interpreted as creating any warranty that all locations and special measures for the protection of plants, animals, cultural resources, and cave resources have been described herein, elsewhere in the contract, or designated on the ground.

29. EROSION PREVENTION AND CONTROL

Contractor's Operations shall be conducted reasonably to minimize soil erosion. Equipment shall not be operated when ground conditions are such that excessive damage will result. The kinds and intensity of erosion control work done by Contractor shall be adjusted to ground and weather conditions and the need for controlling runoff. Erosion control work shall be kept current immediately preceding expected seasonal periods of precipitation or runoff.

If Contractor fails to do seasonal erosion control work prior to any seasonal period of precipitation or runoff, Forest Service may temporarily assume responsibility for the work and any unencumbered deposits hereunder may be used by Forest Service to do the work. If needed for such work, Contractor shall make additional deposits on request by Forest Service. Any money deposited or used for this purpose shall be treated as cooperative deposits.

30. PROTECTION OF LAND SURVEY MONUMENTS

Forest Service shall appropriately designate on the ground all known survey monuments including but not limited to horizontal control stations (Triangulation Stations), vertical control stations (Bench Marks), property corner monuments, and all Public Land Survey System monuments. This shall include reference monuments, corner accessories such as bearing trees, line trees and line posts. Identifying signs shall be posted by Forest Service on two sides of each known bearing tree, and each line post shall be posted with a metal sign or decal. Line trees may be cut if designated by the Government.

In authorized clearings such as clearcutting units and road construction clearings, and in other instances where damage to survey monuments, corners, corner accessories and survey of property line markers is unavoidable,

Forest Service shall arrange protective or perpetuative action that does not cause unnecessary delay to Contractor.

Contractor shall protect all known survey monuments, witness corners, reference monuments, bearing trees, and line markers against avoidable destruction, obliteration, or damage during Contractor's operations. Additional monuments or objects discovered on the area shall be promptly reported to the other party and shall also be protected. If any known monuments, corners, corner accessories, and survey or property line markers are destroyed, obliterated, or damaged during Contractor's operations, Contractor shall employ a registered professional land surveyor to reestablish or restore at the same location the monuments, corners, corner accessories or line markers. Such surveyors shall use procedures and monumentation that accords with the Bureau of Land Management Manual of Instructions for the Survey of the Public Lands of the United States for General Land Office surveys and any applicable State statutes concerned with land surveys. Contractor's agent shall record such surveys in accordance with state survey statutes.

31. PROTECTION OF IMPROVEMENTS

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So far as practicable, the Contractor shall protect all physical improvements including, but not limited to, roads, trails, ditches, fences, waterlines, and other improvements, existing in the contract area, determined to have continuing need or use, and designated on the Contract Area Map.

The Contractor shall keep all roads and trails needed for fire protection or other purposes and designated on the Contract Area Map reasonably free of equipment and products, slash, and debris resulting from the Contractor's operations. The Contractor shall make timely restoration of any such improvements damaged by the Contractor's operations and, when directed (because of such operations) shall move such improvements if and as specified by the Forest Service.

All protected improvements will be protected from damage by the Contractor. If any protected improvements are disturbed, the Contractor shall immediately contact the COR and will be liable for the cost of repairs.

32. PROTECTION OF RESIDUAL TREES

Contractor's Operations shall not unnecessarily damage young growth or other trees to be reserved (see Appendix B.)

33. SANITATION AND SERVICING

Contractor shall take all reasonable precautions to prevent pollution of air, soil, and water by Contractor's operations. If facilities for employees are established on Contract Area, they shall be operated in a sanitary manner. Contractor shall not service tractors, trucks, or other equipment on National Forest lands where servicing is likely to result in pollution to soil or water. Contractor shall remove from National Forest lands all refuse resulting from use, servicing, repair, or abandonment of equipment. In the event that Contractor's operations or servicing of equipment result in pollution to soil or water, Contractor shall conduct cleanup to restore the polluted site to the satisfaction of the Forest Service.

34. PREVENTION OF OIL SPILLS

If Contractor maintains storage facilities for oil or oil products on Contract Area, Contractor shall take appropriate preventive measures to ensure that any spill of such oil or oil products does not enter any stream or other waters of the United States or any of the individual States.

If the total oil or oil products storage exceeds 1,320 gallons or if any single container exceeds a capacity of 660 gallons, Contractor shall prepare a Spill Prevention Control and Countermeasures (SPCC) Plan. Such plan shall meet applicable EPA requirements (40 CFR 112) including certification by a registered professional engineer.

Contractor shall notify Contracting Officer and appropriate agencies within 24 hours of all reportable (40 CFR 110) spills of oil or oil products on or in the vicinity of Contract Area that are caused by Contractor's employees, agents, contractors, Subcontractors, or their employees or agents, directly or indirectly, as a result of Contractor's Operations. Contractor will take whatever initial action may be safely accomplished to contain all spills.

Contractor shall notify the National Response Center and Contracting Officer of all releases of reportable quantities of hazardous substances on or in the vicinity of Contract Area that are caused by Contractor's employees or agents, directly or indirectly, as a result of Contractor's Operations, in accordance with 40 CFR 302.

35. NOXIOUS WEED CONTROL

- (1) In order to prevent the potential spread of noxious weeds onto National Forest lands, the Contractor shall be required to furnish the Forest Service with proof of weed-free equipment. Cleaning shall remove all soil, plant parts, seeds, vegetative matter, or other debris that could contain or hold seeds. Only logging and construction equipment so cleaned and inspected by the Forest Service will be allowed to operate within the Contract Area. All subsequent move-ins of equipment to the Contract Area shall be treated in the same manner as the initial move in. "Off-road equipment" includes all

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logging and construction machinery, except for log trucks, chip vans, service vehicles, water trucks, pickup trucks, cars, and similar vehicles.

- (2) Noxious weeds are defined as any exotic plant species established or that may be introduced in the State, which may render the land unfit for agriculture, forestry, livestock, wildlife, or other beneficial uses and which is designated by applicable state agency or the local counties contractor is operating in, or by other appropriate agencies having jurisdiction.
- (3) All Off-road equipment and vehicles to be used at the job site shall be cleaned and certified free of noxious weeds and their seeds prior to entrance onto the National Forest. The restriction shall include equipment and vehicles intended for off-road use, as well as on road use, whether they are owned, leased, or borrowed by the Contractor or subcontractor.
- (4) Cleaning shall consist of the removal of all dirt, grease, debris, and materials that may harbor noxious weeds and their seeds. This may require the use of a pressure hose. Cleaning shall occur off Federal lands.
- (5) Equipment, materials and vehicles shall be visually inspected by a designated Forest Service Officer, and certified in writing to be reasonably clean and weed free (**use Equipment Cleaning Inspection/Verification Form**). Inspections will take place at a location designated by the Forest Officer in advance of equipment and material arrival. Equipment and vehicles are expected to proceed directly to the job site following the inspection. Forest Service has 2 days, excluding weekends and holidays, to inspect equipment.
- (6) New infestations of noxious weeds, of concern to Forest Service and identified by either Contractor or Forest Service, on the Contract Area or on the haul route, shall be promptly reported to the other party. Contractor and Forest Service shall agree on treatment methods to reduce or stop the spread of noxious weeds when new infestations are found. A current list of noxious weeds of concern to Forest Service is available at each Forest Service office.

36. 3MEADOW PROTECTION

Reasonable care shall be taken to avoid damage to the cover, soil, and water in meadows shown on Contract Area Map. Vehicular or skidding equipment shall not be used on meadows, except where roads, landings, and tractor roads are approved. Unless otherwise agreed, trees felled into meadows shall be removed by endlining. Resulting logging slash shall be removed where necessary to protect cover, soil, and water.

37. WETLANDS PROTECTION

Wetlands requiring protection under Executive Order 11990 are shown on Contract Area Map. Vehicular or skidding equipment shall not be used in such wetlands, except where roads, landings, and tractor roads are approved by the Contracting Officer. Additional measures needed to protect such areas are provided elsewhere herein.

38. STREAMCOURSE PROTECTION

“Streamcourses” that are subject to provisions of this Section are shown on Contract Area Map. Unless otherwise agreed, the following measures shall be observed to protect Streamcourses:

- (a) Contractor’s Operations shall be conducted to prevent debris from entering Streamcourses, except as may be authorized under paragraph (d). In event Contractor causes debris to enter Streamcourses in amounts that may adversely affect the natural flow of the stream, water quality, or fishery resource, Contractor shall remove such debris as soon as practicable, but not to exceed 48 hours, and in an agreed manner that will cause the least disturbance to Streamcourses.
- (b) Culverts or bridges shall be required on Temporary Roads at all points where it is necessary to cross Streamcourses. Such facilities shall be of sufficient size and design and installed in a manner to provide

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unobstructed flow of water and to minimize damage to Streamcourses. Trees or products shall not be otherwise hauled or yarded across Streamcourses unless fully suspended.

(c) Wheeled or track-laying equipment shall not be operated in Streamcourses, except at crossings designated by Forest Service or as essential to construction or removal of culverts and bridges.

(d) Flow in Streamcourses may be temporarily diverted only if such diversion is necessary for Contractor's planned construction and Forest Service gives written authorization. Such flow shall be restored to the natural course as soon as practicable and, in any event, prior to a major storm runoff period or runoff season.

STREAM PROTECTIONS	
CONTRACT AREA MAP LABEL	RESTRICTION
Streamcourse Protection, Meadow and Wetland Protection	A contour berm will be installed around equipment staging/refueling locations and be located at least 300 feet away from streams, wetlands, meadows and wet aspen stands.
Live Streamcourse Protection	Perennial* 25-foot Equipment Exclusion Zone (EEZ) Intermittent* 100-foot EEZ. Equipment Crossing Prohibited Ephemeral* 100-foot EEZ. Equipment Crossing Prohibited

39. REQUIREMENTS OF RIGHTS-OF-WAY

Contractor's road construction and use on rights-of-way shall be confined to said rights-of-way and limited by the related easements and stipulations, if any, unless Contractor makes other arrangements that will not infringe upon or adversely affect the grantee's rights. Said easements or right-of-way documents are available in the offices of the Forest Supervisor and District Ranger.

40. ROAD MAINTENANCE

Contractor shall maintain roads, commensurate with Contractor's use, in accordance with Road Maintenance Requirements and the Road Maintenance Specifications in Appendix C. Performance of road maintenance work by Contractor may be required prior to, during, and/or after each period of use. The timing of work accomplishment shall be based on Contractor's Operating Schedule.

When two or more commercial users are simultaneously using the same road where Forest Service is not requiring maintenance deposits, the commercial users will develop maintenance responsibilities and arrangements for accomplishing the work. Forest Service must agree to this plan. If the commercial users cannot agree on maintenance responsibilities, Forest Service shall resolve the differences. If Contractor elects to use different roads than those listed, Forest Service shall determine Contractor's commensurate share of road maintenance and revise road maintenance deposits. If Forest Service cannot perform its full commensurate share of road maintenance, Forest Service shall make a cash payment to Contractor for performance of such work.

Unless agreed in writing, prehaul maintenance shall be completed on any portion of road prior to hauling on that portion. Maintenance, as used in this contract, does not include road reconstruction or repairs of an extraordinary nature. **Note:** See Appendix C for Specifications.

41. USE BY OTHERS

Forest Service shall have the right to use any road constructed by Contractor under this contract for any and all purposes in connection with the protection and administration of the National Forest. Other parties, in connection with the logging of tributary National Forest timber, may use roads constructed by Contractor hereunder when such use will not materially interfere with Contractor's Operations. Such third-party use shall be contingent upon the third party paying a fair share of maintenance cost commensurate with such

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commercial use. Unless otherwise provided, Forest Service shall authorize other uses of roads constructed by Contractor hereunder only if:

- (a) Forest Service makes appropriate arrangements to relieve Contractor of related maintenance costs commensurate with such other uses and
- (b) Such other uses will not materially interfere with Contractor's Operations.

Where Contractor reconstructs a road having established use, the use during reconstruction and thereafter by Contractor shall be such as to reasonably accommodate such established use. Contractor shall have the right to use such reconstructed road without material additional interference from other users.

42. INCIDENTAL PAYMENT ITEMS

The intent of the contract is to provide for the complete performance of the project described in the contract. Unless otherwise provided, the Contractor shall furnish all labor, materials, equipment, tools, transportation, and supplies and perform all work required to complete the project in accordance with drawings, specifications, and provisions of the contract. Payment for contract work will be made only for and under those pay items included in the Schedule of Items. All other work and materials will be considered as incidental to and included in the payment for items shown.

43. SAFETY

Contractor's Operations shall facilitate Forest Service's safe and practical inspection of Contractor's Operations and conduct of other official duties on Contract Area. Contractor has all responsibility for compliance with safety requirements for Contractor's employees. In the event that a conflict develops between the requirements of this contract or agreed upon methods of proceeding hereunder and State or Federal safety requirements, the contract shall be modified, and Contractor may request an equitable adjustment.

Unless otherwise agreed in writing, when Contractor's Operations are in progress adjacent to or on Forest Service controlled roads and trails open to public travel, Contractor shall furnish, install, and maintain all temporary traffic controls that provide the user with adequate warning of hazardous or potentially hazardous conditions associated with Contractor's Operations. Contractor and Forest Service shall agree to a specific Traffic Control Plan for each individual project prior to commencing operations. Devices shall be appropriate to current conditions and shall be covered or removed when not needed. Except as otherwise agreed, flagmen and devices shall be as specified in the "Manual on Uniform Traffic Control Devices for Streets and Highways" (MUTCD) and as shown on Plans, Contract Area Map, Traffic Control Plan, or in specifications attached hereto.

Logging operations, thinning, slash treatments, and roadwork are inherently hazardous. Conditions, which are inherently hazardous, that could lead to serious injury or loss of life include, but are not limited to:

1. Traffic hazards	5. Heavy equipment operations
a. Narrow gravel or native surface forest roads, some single lane with turnouts (limited visibility)	a. Backing into objects
b. Long, steep grades (less than 20%)	b. Steep side slopes or soft ground for rollovers
c. Logging, Administrative, and Recreational Traffic	c. Refueling hazards
d. Unskilled visitor traffic	d. Exceeding equipment limitations
e. Dusty conditions hindering visibility behind vehicles	e. Unsafe equipment / lack of safety equipment
f. Horse traffic at crossings	f. Operator fatigue
	g. May be overwidth/overweight equipment to watch for on roads
2. Work environment	6. Excavation
a. Inclement weather for potential	a. Slope or trench wall instability

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hypo/hyperthermia	
b. High winds that can bring down trees and blow dust	b. Air quality/ventilation
c. Wet, snowy or ice conditions making ground unstable	
d. High dB noise	7. Truck Driving & Trailer Towing
e. Insects, plants, animals	a. Increased stopping distance
f. Hazardous footing/terrain	b. Loads insecurely lashed
	c. Low clearances (power lines, etc.)
3. Communications	
a. Cell phone or radio availability for emergencies	8. Personnel
4. Chainsaw operations	a. Carry adequate liquids to prevent dehydration
a. Improper safety equipment	b. Dress for working conditions including wearing appropriate safety equip.
b. Overhead/falling debris	c. Keep in communications for safety
c. Fatigue/improper cutting techniques	

Contractor shall provide a job-specific safety plan, addressing mitigation of the hazards listed above and any other hazards known to the Contractor. The plan shall be presented at the post-award conference.

44. FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at either of these websites:

<https://www.acquisition.gov/browse/index/far>
<https://www.acquisition.gov/agar>

I. FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES

- 52.228-2 Additional Bond Security (OCT 1997)
- 52.228-11 Pledges of Assets (AUG 2018)
- 52.228-14 Irrevocable Letter of Credit (NOV 2014)

45. CONTRACTOR PERFORMANCE SYSTEM REGISTRATION

All Contractors shall ensure that they are registered with the Contractor Performance Assessment Reporting System (CPARS) within 30 days of contract award. System information can be found at: <https://www.cpars.gov/>

46. INVOICE PROCESSING PLATFORM (IPP)

The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP). The Contractor must follow the instructions on how to register and submit invoices via IPP as prescribed in the previous communications from USDA and Treasury. All invoices shall be submitted via the electronic Invoice Processing Platform. This platform is managed by the U.S. Department of Treasury and additional information is available at this website: <https://www.ipp.gov/index.htm>.

Contractors register at: <https://www.ipp.gov/contractors/enrollment-contractors.htm> to establish an account.

47. AGAR 452.236-70 EMERGENCY RESPONSE, FIRE SUPPRESSION, AND LIABILITY (NOV 2024)

(a) *Contractor's Responsibility for Responding to Emergencies.* When directed by the contracting officer, the Contractor shall allow the Government to temporarily use employees and equipment from the work

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site for emergency work (anticipated to be restricted to firefighting). This is considered to be within the general scope of the contract. An equitable adjustment for the temporary use of employees and equipment will be made under the Contract Terms and Conditions—Commercial Products and Commercial Services Changes clause, FAR 52.212-4 (c).

(b) *Contractor's Responsibility for Fire Fighting.* The Contractor, under the provisions of FAR 52.236-9, Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements, shall immediately extinguish all fires on the work site other than those fires in use as a part of the work. The Contractor may be held liable for all damages and for all costs incurred by the Government for labor, subsistence, equipment, supplies, and transportation deemed necessary to control or suppress a fire set or caused by the Contractor or the Contractor's agents, subcontractors, or employees subject to the fire classifications listed in subsection (c).

(c) *Fire Suppression Costs.* The Contractor's obligations for cost of fire suppression vary according to three classifications of fires as follows:

(1) *Operations Fire.* An "operations fire" is a fire caused by the Contractor's operations other than a negligent fire. The Contractor agrees to reimburse the Forest Service for such cost for each operations fire, subject to a maximum dollar amount of \$300,000.00. The cost of the Contractor's actions, supplies, and equipment expended or used on suppressing any such fire, or otherwise provided at the request of Forest Service, shall be credited toward such maximum. If the Contractor's actual cost exceeds the contractor's maximum obligation stated above, the Forest Service shall reimburse the contractor for the excess.

(2) *Negligent Fire.* A "negligent fire" is a fire caused by the negligence or fault of the Contractor's operations including, but not limited to, one caused by smoking by persons engaged in the Contractor's operations during the course of their employment, or during rest or lunch periods; or if the Contractor's failure to comply with requirements under this contract results in a fire starting or permits a fire to spread. Damages and the cost of suppressing negligent fires shall be borne by the Contractor.

(3) *Other Fires on Contract Area.* The Forest Service shall pay the Contractor, at firefighting rates common in the area or at prior agreed rates, for equipment or personnel furnished by the Contractor at the request of the Forest Service, on any fire on the contract area other than an operations fire or a negligent fire.

(d) *Contractor's Responsibility for Notification in Case of Fire.* The Contractor shall immediately notify the Government of any fires sighted on or in the vicinity of the work site.

(e) *Performance by the Contractor.* Where the Contractor's employees, agents, contractors, subcontractors, or their employees or agents perform the Contractor's operations in connection with fire responsibilities, the Contractor's obligations shall be the same as if performance was by the Contractor.

(f) *State Law.* The Contractor shall not be relieved by the terms of this contract of any liability to the United States for fire suppression costs recovered in an action based on State law, except for such costs resulting from operations fires. Amounts due to the Contractor for firefighting expenditures on operations fires shall not be withheld pending settlement of any such claim or action based on State law.

48. FIRE PRECAUTIONARY PERIOD

The Fire Precautionary Period is annually **July 16th to October 15th** inclusive. The CO may change the dates of the Fire Precautionary Period by advanced written notice if justified by unusual weather or other conditions. Equitable Adjustment will not be granted for a change in the Fire Precautionary Period dates. Required tools and equipment shall be kept in a serviceable condition and immediately available for firefighting at all times during the Contractor's operations in the Fire Precautionary Period or as otherwise required.

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SPECIFIED FIRE PRECAUTIONS

Prior to initiating the Contractor's operations during the Fire Precautionary Period, the Contractor shall file with the Government a Fire Prevention and Control Plan providing for the prevention and the control of fires on the Contract Area and other areas of the Contractor's operations. Such plan shall include a detailed list of personnel and equipment at the Contractor's disposal for implementing the plan.

C7.2# - SPECIFIED FIRE PRECAUTIONS. (06/2012)

Contractor or a designated Contractor's Representative shall certify compliance with specific Contract and California Public Resources Code (CPRC) fire precautionary measures in B7.2 Plans, C7.2# and C7.2#. Certification shall be provided prior to starting operations during Fire Precautionary Period and shall be updated as needed.

Listing of specific fire precautionary measures in the following subsections is not intended to relieve Contractor in any way from compliance with State fire laws covering fire prevention and suppression equipment applicable to Contractor's Operations.

Upon request of Forest Service, Contractor shall permit and assist in periodic testing and inspection of required fire equipment.

The following definitions shall apply to C7.2# and C7.22#:

Active Landing: A location Contractor is skidding logs into, or performing other operations such as delimbing, log manufacturing, and chipping logs. Except for EV and E days, loading logs or stockpiled chips only on a cleared landing does not constitute an Active Landing.

Hot Saw: A harvesting system that employs a high-speed (>1100 rpm) rotating felling head (i.e., full rotation lateral tilt head).

Mechanical Operations: The process of felling, skidding, chipping, shredding, piling, log processing and/or yarding which requires the use of motorized power which includes, chainsaws, chippers, motorized carriages, masticators, stroke de-limbers, skidders etc.

Specific equipment requirements and fire precautionary measures are shown in the following table and in C7.22#:

A. Fire Tools and Equipment

Contractor shall meet applicable parts of Section 4428 of the CPRC.

Unless agreed otherwise, Fire tools kept at each Active Landing shall be sufficient to equip all employees in the felling, yarding, loading, chipping, and material processing operations associated with each landing. Fire equipment shall include two tractor headlights for each tractor dozer used in Contractor's Operations. Tractor headlights shall be attachable to each tractor and served by an adequate power source. Fire tools shall be kept in a sealed fire tool box adjacent to the Active Landing and readily accessible in event of fire.

Where cable yarding is used, Contractor shall provide a size 0 or larger shovel with an overall length of not less than 46 inches and a serviceable 5 gallon backpack pump filled with water or a fire extinguisher bearing a label showing at least a 4-A rating must be within 25 feet of each tail and corner block.

Trucks, tractors/skidders, pickups and other similar mobile equipment shall be equipped with and carry at all times a size 0 or larger shovel with an overall length

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of not less than 46 inches and a 2-1/2 pound axe or larger with an overall length of not less than 28 inches.

All required fire tools shall be maintained in suitable and serviceable condition for fire fighting purposes.

- B. Fire Extinguishers Contractor shall equip each internal combustion yarder, fuel truck, and loader with a (4-A:60-B:C) fire extinguisher for oil and grease fires.

Skidders and tractors shall be equipped with a minimum 5-BC fire extinguisher.

Fire extinguishers shall be mounted, readily accessible, properly maintained and fully charged.

Contractor shall equip all mechanized harvesting machines and log processors with hydraulic systems, powered by an internal combustion engine (e.g. masticator, chipper, feller/buncher, harvester, forwarder, Hot Saw, stroke delimber, etc), with at least two 4-A:60-B:C fire extinguishers or an acceptable CAFS substitute identified in Section K.

- C. Spark Arresters and Mufflers Except for tractors and other equipment with exhaust-operated turbochargers, Contractor shall equip each operating tractor and any other internal combustion engine with an approved spark arrester. There shall be no exhaust bypass on any system.

Spark Arresters shall be a model tested and approved under Forest Service Standard 5100-1a as shown in the National Wildfire Coordinating Group Spark Arrester Guide, Volumes 1 and 2, and shall be properly mounted and maintained according to manufacturer's specifications.

Every motor vehicle subject to registration shall at all times be equipped with an adequate exhaust system meeting the requirements of the California Vehicle Code.

- D. Power Saws Each power saw shall be equipped with a spark arrester approved and maintained in effective working order as identified in the Spark Arrestor Guide in Section C. above and according to applicable parts of CPRC Section 4442 or 4443. An Underwriters Laboratories (UL) approved fire extinguisher containing a minimum 14 ounces of fire retardant shall be kept with each operating saw.

A size 0 or larger shovel with an overall length of not less than 38 inches shall be kept with each gas can, but not more than 300 feet from each power saw when used off cleared landing areas.

- E. Fire Supervisor & Fire Patrolperson Contractor shall designate in the fire plan required by B7.1 and furnish on Contract Area during operating hours a fire supervisor, named in writing and authorized to act on behalf of Contractor in fire prevention and suppression matters.

Unless agreed otherwise, Contractor shall furnish and designate in writing, a Fire Patrolperson each operating day when Project Activity Level C or higher is in effect. When on duty, the Fire Patrolperson is required to patrol the operation for the prevention and detection of fires, to take suppression action where necessary and to notify Forest Service as required under Sections I. Reporting Fires and L. Communications. This Fire Patrol is required on foot, unless otherwise agreed.

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By written agreement, one Fire Patrolperson may provide patrol on this and adjacent projects or sales. No Fire Patrolperson shall be required on Specified Road construction jobs except during clearing operations unless otherwise specified.

- F. Seasonal Permits Contractor shall obtain written permits from Forest Service before allowing welding, warming fires or burning, subject to C7.22# – Emergency Precautions.
- G. Clearing of Fuels Contractor shall clear away, and keep clear, fuels and logging debris as follows:

Welding equipment and stationary log loaders, yarders and other equipment listed in California State Law:	10 feet slope radius
Tail or corner haulback blocks:	All running blocks on a cable yarding operation shall be located in the center of an area that is cleared to mineral soil at least 15 feet in diameter.
Lines near, between or above blocks:	Sufficient clearing to prevent line from rubbing on snags, down logs and other dead woody material.

- H. Smoking All smoking shall be confined within a car, truck, crew rig or other enclosed cab after 1:00 PM on Ev days and all hours on E days (C7.22#). At other times, any smoking shall be done while sitting in an area at least 3 feet in diameter, cleared of flammable materials. Burning tobacco and matches shall be extinguished before they are properly disposed.
- I. Reporting Fires As soon as feasible, but no later than **15 minutes** after discovery, Contractor shall notify Forest Service of any fires on Contract Area or along roads used by Contractor.
- J. Tank Truck Contractor shall provide a water tank truck or trailer on or in proximity to Contract Area during Contractor's Operations hereunder during Fire Precautionary Period unless otherwise agreed.
- Tank truck or trailer shall contain at least 300 gallons of water and comply with the following requirements:
- (1) Pump, which at sea level, can deliver 23 gallons per minute at 175 pounds per square inch measured at the pump outlet. Pumps shall be tested on Contract Area by Forest Service using a 5/16 inch orifice with a one inch in line test kit and shall meet or exceed the pressure values identified in the following table for nearest temperature and elevation:

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T e m p	Sea Leve l		1000 Feet		200 0 Feet		3000 Feet		4000 Feet		5000 Feet		6000 Feet		7000 Feet		8000 Feet		9000 Feet		1000 0 Feet	
55	17	23	17	23	16	23	16	22	16	22	15	22	15	22	15	21	14	21	14	21	13	21
70	17	23	17	23	16	22	16	22	15	22	15	22	15	21	14	21	14	21	13	21	13	20
85	17	23	16	23	16	22	15	22	15	22	15	21	14	21	14	21	14	21	13	20	13	20
10 0	16	23	16	23	15	22	15	22	15	22	14	21	14	21	14	21	13	20	13	20	13	20
	P	G	P	G	P	G	P	G	P	G	P	G	P	G	P	G	P	G	P	G	P	G
	S	P	S	P	S	P	S	P	S	P	S	P	S	P	S	P	S	P	S	P	S	P
	I	M	I	M	I	M	I	M	I	M	I	M	I	M	I	M	I	M	I	M	I	M

The pump outlet shall be equipped with 1-1/2 inch National Standard Fire Hose thread. A bypass or pressure relief valve shall be provided for other than centrifugal pumps.

(2) 300 feet of 3/4-inch inside diameter rubber-covered high-pressure hose mounted on live reel attached to pump with no segments longer than 50 feet, when measured to the extreme ends of the couplings. Hose shall have reusable compression wedge type 1-inch brass or lightweight couplings (aluminum or plastic). One end of hose shall be equipped with a coupling female section and the other end with a coupling male section. The hose shall, with the nozzle closed, be capable of withstanding 200 PSI pump pressure without leaking, distortions, slipping of couplings, or other failures.

(3) A shut-off combination nozzle that meets the following minimum performance standards when measured at 100 P.S.I. at the nozzle:

	G.P.M.	Horizontal Range
Straight Stream	10	38 feet
Fog Spray	6 - 20	N/A

(4) Sufficient fuel to run pump at least 2 hours and necessary service accessories to facilitate efficient operation of the pump.

(5) When Contractor is using Hot Saws or Masticators an additional 250 feet of light weight hose, approved by Forest Service, shall be immediately available for use and be capable of connecting to the 300 feet of hose and appurturances in (2) and (3) above.

(6) This equipment and accessories shall be deliverable to a fire in the area of operations and is subject to the requirements for each specific activity level identified in C7.22#.

K. Compressed Air Foam System (CAFS)

A fire suppression system where compressed air is added to water and a foaming agent. By agreement, Contractor may substitute a CAFS or functional equivalent

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in lieu of the tank truck, trailer, or fire extinguishers, provided it meets or exceeds the following specifications and requirements:

1. Variable foam expansion ratio – 10:1 to 20:1.
2. Units shall be kept fully charged with air; water and foam concentrate as recommended by the manufacturer and have the appropriate tools to service the system.
3. The unit shall contain enough energy to empty tank and clear hose prior to exhausting propellant.
4. The unit shall be capable of being completely recharged within 10 minutes.
5. When used on cable yarding landings, the unit shall be outfitted for immediate attachment to carriage and transported without damage to the unit.

Fire extinguishers required for Hot Saws, Masticators and similar equipment identified in Section B. above may be substituted with a 3-gallon CAFS.

Tank truck, trailer or equivalent may be substituted with a 30 Gallon CAFS with at least 550 feet of one inch hose and an adjustable nozzle with enough water, air and foam concentrate for at least one recharge.

This equipment and accessories shall also be deliverable to a fire in the area of operations and subject to the requirements for each specific activity level identified in C7.22#.

- L. Communications Contractor shall furnish a serviceable communications system such as a telephone, radio-telephone, radio system or satellite phone connecting each operating side within the Contract Area with Contractor's headquarters, and capable of notifying Forest Service within **15 minutes** of discovery of any fires on the Contract Area or along Contractor's haul route. When such headquarters is at a location which makes communication to it clearly impractical, Forest Service may agree to a reasonable alternative notification method.

A Citizen's Band (CB)radio is not acceptable communications.

- M. Cable Yarding Tank Unit When all or part of Included Timber will be harvested by a long span (over 1,500 feet)cable yarding operation, Contractor shall provide at each active cable yarding landing a tank truck, trailer or acceptable CAFS substitute which can be lifted and transported by the carriage.

The unit shall meet the same requirements as specified for the tank truck, trailer or approved CAFS substitute.

- N. Helicopter Yarding Fire Precautions Contractor shall provide and maintain fire equipment as follows:
1. The fire tool box required under this provision shall be equipped for attachment to the helicopter long line so that it may be hauled to needed locations. Such attachment device shall not interfere with access to fire tools. Unless agreed otherwise, the fire tool box shall be located at the Active Landing ready for immediate dispatch.
 2. An external helibucket readily attachable to the helicopter, with a capacity of at least 500 gallons, and having a remote control door mechanism adequate for rapid dropping of water. The helibucket shall be located at the helicopter

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service landing and shall be filled with water ready for immediate dispatch unless otherwise agreed.

3. All aircraft used in conjunction with Contractor's Operations shall be equipped with an operable radio system capable of meeting Region Five avionics requirements.
4. For protection of fuel servicing operations, fire extinguishers which have the following ratings based on the open hose discharge capacity, i.e., "broken hose," of the aircraft fueling system shall be readily available:
 - a. Where said capacity does not exceed 200 gallons per minute, at least one approved extinguisher having a minimum rating of 20-B;
 - b. Where said capacity is in excess of 200 gallons per minute, but not over 350 gallons per minute, one approved extinguisher having a minimum rating of 80-B;
 - c. Where said capacity is in excess of 350 gallons per minute, two approved extinguishers, each having a minimum rating of 80-B.
5. By agreement, a suitable CAFS may also be used in lieu of the above extinguishers.
6. Extinguishers of over 50 pounds gross weight shall be of wheeled type or be mounted on carts to provide mobility and ease of handling.

C7.22# - EMERGENCY PRECAUTIONS. (06/2012) Contractor's Operations shall conform to the limitations or requirements in the Project Activity Level (PAL) table below. Unless otherwise agreed in writing, Project Activity Levels applicable to this project shall be the predicted levels for the Fire Danger Rating Area(s), or fire weather station(s) stated in the Contract Area Map legend.

Forest Service, in its sole discretion, may change the predicted activity level if the current fire suppression situation, weather and vegetation conditions warrant an adjustment. If practicable, Forest Service will determine the following day's activity level by 6:00 PM. Contractor shall obtain the predicted Project Activity Level from the appropriate Ranger District Office before starting work each day.

Forest Service may change the Project Activity Level Table to other values upon revision of the National Fire Danger Rating System. When Contractor is notified, the revised Project Activity Levels will supersede the levels in the Project Activity Level Table below.

PROJECT ACTIVITY LEVEL (PAL) – C7.22# - EMERGENCY PRECAUTIONS

PROJECT ACTIVITY LEVEL TABLE

Level	<i>Project Activity Minimum Requirements and Restrictions. Restrictions at each level are cumulative.</i>
A	Minimum required by C7.2#.
B	1. Tank truck, trailer, or approved CAFS substitute shall be on or adjacent to the Active Landing.
C	1. When Hot Saws or Masticators are operating, a tank truck, trailer or approved CAFS substitute shall be within ¼ mile of these operations. Effective communications shall exist between the operator and the Active Landing. 2. Immediately after Mechanical Operations cease. Fire Patrol is required for two (2) hours.
D	1. Immediately after Hot Saw or Masticator operations cease; Fire patrol is required for three (3) hours.

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Level	<i>Project Activity Minimum Requirements and Restrictions. Restrictions at each level are cumulative.</i>
	2. No Dead Tree felling after 1:00 PM, except recently dead. 3. No Welding or cutting of metal after 1:00 PM, except by special permit.
Ev	1. The following activities may operate all day: a) Loading and hauling logs decked at approved landings. b) Loading and hauling chips stockpiled at approved landings. c) Servicing equipment at approved sites. d) Dust abatement, road maintenance (Chainsaw use prohibited), culvert installation within cleared area, chip sealing, paving, earth moving or rock aggregate stock pile loading and installation (does not include pit or quarry development). e) Chainsaw and log processing operations associated with loading logs or other forest products at approved landings. 2. Hot Saws or Masticators may operate until 1:00 PM; provided that: a) A tractor or other equipment with a blade capable of constructing fireline is on or adjacent to the active landing or within ¼ mile of the operating equipment. This piece of equipment shall have effective communication with the Hot Saw or Masticator. b) Any additional restrictions specified by the Forest. 3. All other conventional Mechanical Operations are permitted until 1:00 PM. 4. Some operations may be permitted after 1:00 PM, on a case-by-case basis, under the terms of a PAL Ev Variance Agreement. Activities for which a Variance may be issued are: • Rubber Tire Skidding • Chipping on Landings • Helicopter Yarding • Fire Salvage When approved by a Line Officer, a Variance Agreement can be implemented when the criteria specified in the agreement are met and mitigation measures are in place. This approval is good for ten (10) days unless cancelled sooner or extended by the Contracting Officer for an additional ten (10) days. Variance approval can be withdrawn at the sole discretion of Forest Service. Variance approval is contingent on the 7-day fire weather forecast, fuel conditions, site characteristics, current fire situation, state of Contractor's equipment for prevention and suppression readiness, type of operation and social and community considerations etc. (See attached Project Activity Level Variance Agreement).
E	The following activities may operate all day: 1. Loading and hauling logs decked at approved landings. 2. Loading and hauling chips stockpiled at approved landings. 3. Servicing Equipment at approved sites. 4. Dust abatement, road maintenance (chainsaw use prohibited) or loading stock piles and rock aggregate installation (does not include pit or quarry development). 5. Chainsaw operation associated with loading at approved landings. All other activities are prohibited.

Project Activity Level Climatology

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SPECIFICATIONS PURSUANT TO C7.22# – EMERGENCY PRECAUTIONS. (10/2010)

Region 5 Project Activity Level (PAL) Ev Variance Application/Agreement

Project Name: _____
Contract Number: _____
Purchaser/Contractor Name: _____
Request #__, for period: _____
Units/Subdivisions Affected: _____

Location of operation:	
Slope	
Aspect	
Elevation	
Fuels on site	
Fuels in surrounding area	
7 Day PAL Outlook	
Short range predictions (Red Flags)	
<i>Fuel Moistures</i>	
Response time of suppression resources	
Potential for ignition	
RAWS location	
Current Fire Situation:	
Draw down information	
National Readiness Level	
Contractual considerations:	
Normal Operating Season	
Frequency of recent contract fires in area	
Type of operation	
Purchaser/Contractors past/current performance & equipment readiness	
Other site specific mitigation or precaution (i.e. Purchaser/Contractors proposals)	
Social & Community Considerations:	
Proximity of high value resources	
Sensitivity of location	
Remarks:	

Ev Proposed Actions

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☐ Rubber Tired Skidding

☐ Chipping on Landings

☐ Helicopter Yarding

☐ Fire Salvage

Description of Mitigation Measures

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Fire Management Officer Concurrence

Date

Line Officer Approval

Date

I have considered the above request and determined the specified mitigation measures or actions must be implemented to continue operations in Project Activity Level Ev. Unless extended, the approval remains in effect for ten (10) calendar days unless cancelled sooner or extended by the Forest Service for an additional ten (10) days. At the sole discretion of the Forest Service, this variance can be modified and/or cancelled at no cost to the government.

Contracting Officer

Date

Purchaser/Contractor Rep.

Date

END OF ADDENDUM TO FAR 52-212-4

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49. FAR 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. (JAN 2025) (DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [FAR 52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [FAR 52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (3) [FAR 52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [FAR 52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) [FAR 52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).
- (6) [FAR 52.233-3](#), Protest After Award (AUG 1996) ([31 U.S.C. 3553](#)).
- (7) [FAR 52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ([19 U.S.C. 3805 note](#))).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☒ (1) [FAR 52.203-6](#), Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) ([41 U.S.C. 4704](#) and [10 U.S.C. 4655](#)).
- ☐ (2) [FAR 52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) ([41 U.S.C. 3509](#)).
- ☐ (3) [FAR 52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☒ (4) [FAR 52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).
- ☒ (5) [FAR 52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).
- ☐ (6) [Reserved].
- ☒ (7) [FAR 52.204-14](#), Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) [FAR 52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
- ☒ (9) [FAR 52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

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- ☐ (10) [FAR 52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II)
- ☐ (11)(i) [FAR 52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition (Dec 2023) ([Pub. L. 115-390](#), title II)
 - ☐ (ii) Alternate I (Dec 2023) of [FAR 52.204-30](#).
- ☒ (12) [FAR 52.209-6](#), Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (Nov 2021) ([31 U.S.C. 6101 note](#)).
- ☒ (13) [FAR 52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)). Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).
- ☐ (14) [Reserved].
- ☐ (15) [FAR 52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).
- ☒ (16) [FAR 52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) ([15 U.S.C. 657a](#)).
- ☐ (17) [Reserved]
- ☐ (18) (i) [FAR 52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) ([15 U.S.C. 644](#)).
 - ☐ (ii) Alternate I (Mar 2020) of [FAR 52.219-6](#).
- ☐ (19) (i) [FAR 52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) ([15 U.S.C. 644](#)).
 - ☐ (ii) Alternate I (Mar 2020) of [FAR 52.219-7](#).
- ☒ (20) [FAR 52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)).
- ☒ (21) (i) [FAR 52.219-9](#), Small Business Subcontracting Plan (SEP 2023) ([15 U.S.C. 637\(d\)\(4\)](#)).
 - ☐ (ii) Alternate I (Nov 2016) of [FAR 52.219-9](#).
 - ☐ (iii) Alternate II (Nov 2016) of [FAR 52.219-9](#).
 - ☐ (iv) Alternate III (Jun 2020) of [FAR 52.219-9](#).
 - ☐ (v) Alternate IV (Sep 2023) of [FAR 52.219-9](#).
- ☐ (22) (i) [FAR 52.219-13](#), Notice of Set-Aside of Orders (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
 - ☐ (ii) Alternate I (MAR 2020) of [FAR 52.219-13](#).
- ☐ (23) [FAR 52.219-14](#), Limitations on Subcontracting (Oct 2022) ([15 U.S.C. 637s](#)).
 - [Contracting Officer check as appropriate.]*

 - ☐ By the end of the base term of the contract and then by the end of each subsequent option period;
or
 - ☐ By the end of the performance period for each order issued under the contract.
- ☒ (24) [FAR 52.219-16](#), Liquidated Damages—Subcontracting Plan (SEP 2021) ([15 U.S.C. 637\(d\)\(4\)\(F\)\(i\)](#)).
- ☐ (25) [FAR 52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) ([15 U.S.C. 657f](#)).
- ☐ (26) (i) [FAR 52.219-28](#), Post Award Small Business Program Rerepresentation (FEB 2024) ([15 U.S.C. 632\(a\)\(2\)](#)).
 - ☐ (ii) Alternate I (MAR 2020) of [FAR 52.219-28](#).
- ☐ (27) [FAR 52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) ([15 U.S.C. 637\(m\)](#)).
- ☐ (28) [FAR 52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) ([15 U.S.C. 637\(m\)](#)).
- ☐ (29) [FAR 52.219-32](#), Orders Issued Directly Under Small Business Reserves (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- ☐ (30) [FAR 52.219-33](#), Nonmanufacturer Rule (SEP 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).
- ☒ (31) [FAR 52.222-3](#), Convict Labor (JUN 2003) (E.O. 11755).
- ☒ (32) [FAR 52.222-19](#), Child Labor-Cooperation with Authorities and Remedies (FEB 2024).
- ☒ (35) (i) [FAR 52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
 - ☐ (ii) Alternate I (JUL 2014) of [FAR 52.222-35](#).

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- ☒ (36) (i) [FAR 52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
 - ☐ (ii) Alternate I (Jul 2014) of [FAR 52.222-36](#).
- ☒ (37) [FAR 52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- ☒ (38) [FAR 52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- ☒ (39) (i) [FAR 52.222-50](#), Combating Trafficking in Persons (Nov 2021) ([22 U.S.C. chapter 78](#) and E.O. 13627).
 - ☐ (ii) Alternate I (Mar 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- ☐ (40) [FAR 52.222-54](#), Employment Eligibility Verification (MAY 2022) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in [FAR 22.1803](#).)
- ☐ (41) (i) [FAR 52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) ([42 U.S.C. 6962\(c\)\(3\)\(A\)\(iii\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
 - ☐ (ii) Alternate I (MAY 2008) of [FAR 52.223-9](#) ([42 U.S.C. 6962\(i\)\(2\)\(C\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) [FAR 52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☐ (43) [FAR 52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☒ (44) [FAR 52.223-20](#), Aerosols (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☒ (45) [FAR 52.223-21](#), Foams (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ☒ (46) [FAR 52.223-23](#), Sustainable Products and Services (MAY 2024) (DEVIATION FEB 2025) ([7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671i](#)).
- ☐ (47) (i) [FAR 52.224-3](#) Privacy Training (JAN 2017) (5 U.S.C. 552 a).
 - ☐ (ii) Alternate I (Jan 2017) of [FAR 52.224-3](#).
- ☐ (48) (i) [FAR 52.225-1](#), Buy American-Supplies (OCT 2022) ([41 U.S.C. chapter 83](#)).
 - ☐ (ii) Alternate I (OCT 2022) of 52.225-1
- ☐ (49) (i) [FAR 52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301 note](#), [19 U.S.C. 2112 note](#), [19 U.S.C. 3805 note](#), [19 U.S.C. 4001 note](#), 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
 - ☐ (ii) Alternate I [Reserved]
 - ☐ (iii) Alternate II (DEC 2022) of [FAR 52.225-3](#).
 - ☐ (iv) Alternate III (FEB 2024) of [FAR 52.225-3](#).
 - ☐ (v) Alternate IV (OCT 2022) of [FAR 52.225-3](#).
- ☐ (50) [FAR 52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301 note](#)).
- ☐ (51) [FAR 52.225-13](#), Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) [FAR 52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) [FAR 52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) ([42 U.S.C. 5150](#)).
- ☐ (54) [FAR 52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) ([42 U.S.C. 5150](#)).
- ☒ (55) [FAR 52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) ([E.O. 13513](#)).
- ☐ (56) [FAR 52.229-12](#), Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) [FAR 52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).

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- ☒ (58) [FAR 52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).
- ☒ (59) [FAR 52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).
- ☐ (60) [FAR 52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) ([31 U.S.C. 3332](#)).
- ☐ (61) [FAR 52.232-36](#), Payment by Third Party (MAY 2014) ([31 U.S.C. 3332](#)).
- ☐ (62) [FAR 52.239-1](#), Privacy or Security Safeguards (AUG 1996) ([5 U.S.C. 552a](#)).
- ☐ (63) [FAR 52.242-5](#), Payments to Small Business Subcontractors (JAN 2017) ([15 U.S.C. 637\(d\)\(13\)](#)).
- ☐ (64) (i) [FAR 52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)).
 - ☐ (ii) Alternate I (Apr 2003) of [FAR 52.247-64](#).
 - ☐ (iii) Alternate II (Nov 2021) of [FAR 52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☒ (1) [FAR 52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).
- ☒ (2) [FAR 52.222-42](#), Statement of Equivalent Rates for Federal Hires (MAY 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ☐ (3) [FAR 52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ☐ (4) [FAR 52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).
- ☐ (5) [FAR 52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).
- ☐ (6) [FAR 52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).
- ☒ (8) [FAR 52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- ☐ (9) [FAR 52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) ([42 U.S.C. 1792](#)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in [FAR 2.101](#), on the date of award of this contract, and does not contain the clause at [FAR 52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in [FAR subpart 4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

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(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

- (i) [FAR 52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) ([41 U.S.C. 3509](#)).
- (ii) [FAR 52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).
- (iii) [FAR 52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) [FAR 52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (v) [FAR 52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (vi) [FAR 52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii) (A) FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (DEC 2023) ([Pub. L. 115-390](#), title II).
- (B) Alternate I (DEC 2023) of FAR 52.204-30.
- (viii) [FAR 52.219-8](#), Utilization of Small Business Concerns (FEB 2024) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [FAR 52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.
- (ix) [FAR 52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- (x) [FAR 52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
- (xi) [FAR 52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- (xii) [FAR 52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [FAR 52.222-40](#).
- (xiii) [FAR 52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).
- (xiv) (A) [FAR 52.222-50](#), Combating Trafficking in Persons (Nov 2021) ([22 U.S.C. chapter 78](#) and E.O. 13627).

(B) Alternate I (MAR 2015) of [FAR 52.222-50](#) ([22 U.S.C. chapter 78 and E.O. 13627](#)).

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(xvii) [FAR 52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).

(xviii) [FAR 52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).

(xix) [FAR 52.222-54](#), Employment Eligibility Verification (MAY 2022) (E.O. 12989).

(xxi) [FAR 52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii) (A) [FAR 52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (JAN 2017) of [FAR 52.224-3](#).

(xxiii) [FAR 52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [FAR 52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) ([42 U.S.C. 1792](#)). Flow down required in accordance with paragraph (e) of FAR clause [FAR 52.226-6](#).

(xxv) [FAR 52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [FAR 52.232-40](#).

(xxvi) [FAR 52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)). Flow down required in accordance with paragraph (d) of FAR clause [FAR 52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

ADDENDUM TO FAR 52-212-5: The following clause(s) are hereby incorporated by reference or full text as appropriate:

NUMBER	TITLE	DATE
52.204-4	PRINTED OR COPIED DOUBLE-SIDED ON RECYCLED PAPER	MAY 2011
52.204-7	SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.211-18	VARIATION IN ESTIMATED QUANTITY	APR 1984
52.222-6	CONSTRUCTION WAGE RATE REQUIREMENTS	MAY 2014
52.222-7	WITHOLDING OF FUNDS	MAY 2014
52.222-8	PAYROLLS AND BASIC RECORDS	MAY 2014
52.222-9	APPRENTICES AND TRAINEES	JUL 2005 (FEVIATION FEB 2025)
52.222-10	COMPLIANCE WITH COPELAND ACT REGULATIONS	FEB 1988
52.222-11	SUBCONTRACTS (LABOR STANDARDS)	MAY 2014
52.222-12	CONTRACT TERMINATION -- DEBARMENT	MAY 2014
52.222-13	COMPLIANCE WITH CONSTRUCTION WAGE RATE REQ & RELATED REGS	MAY 2014
52.222-14	DISPUTES CONCERNING LABOR STANDARDS	FEB 1988
52.222-15	CERTIFICATION OF ELIGIBILITY	MAY 2014

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52.228-2	ADDITIONAL BOND SECURITY	OCT 1997
52.228-5	INSURANCE – WORK ON A GOVERNMENT INSTALLATION	JAN 1997
52.228-11	INDIVIDUAL SURITY - PLEDGES OF ASSETS	FEB 2021
52.228-14	IRREVOCABLE LETTER OF CREDIT	NOV 2014
52.228-15	PERFORMANCE AND PAYMENT BONDS – CONSTRUCTION	JUN 2020
52.232-5	PAYMENTS UNDER FIXED-PRICE CONSTRUCTION CONTRACTS	MAY 2014
52.232-13	NOTICE OF PROGRESS PAYMENTS	APR 1984
52.232-16	PROGRESS PAYMENTS (ALT I) (MAR 2000)	Nov 2021
52.232-23	ASSIGNMENT OF CLAIMS	MAY 2014
52.232-27	PROMPT PAYMENT FOR CONSTRUCTION CONTRACTS	JAN 2017
52.232-35	DESIGNATION OF OFFICE FOR GOVERNMENT RECEIPT OF ELECTRONIC FUNDS TRANSFER INFORMATION (c) Designated Office: Name: National Finance Center (NFC); Telephone #: 1-800-421-0323	JUL 2013
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	NOV 2021
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	DEC 2022
52.246-21	WARRANTY OF CONSTRUCTION	MAR 1994
52.248-3	VALUE ENGINEERING – CONSTRUCTION	OCT 2020

50. FAR 52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 1989), THE FOLLOWING INFORMATION IS PROVIDED:

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage	Fringe Benefits
Heavy Equipment Operator WG-8	\$25.67/hr.	*
Crew Leader GS-5	\$19.33/hr.	*
Forestry Tech GS-5	\$19.33/hr.	*
Laborer GS-3 or GS-4	\$15.29 or \$17.27/hr.	*

*FRINGE BENEFITS: Life, Accident and Health Insurance and Sick Leave Programs - 5.1 percent of basic hourly rate.

Paid Holidays - 10 per year: New Year's Day, Martin Luther King, Jr's Birthday, Washington's Birthday, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day,

Vacation - 13 days paid vacation per year up to 3 years of service, 20 days after 3 years of service, and 26 days after 15 years of service.

Retirement - 7 percent basic hourly rate.

51. LIST OF ATTACHMENTS

The following attachments are made a part of this solicitation and any resultant contract.

Title	Pages
Appendix A – Work Activity Items	9
Appendix B – Timber Removal (Scaled) Specifications Timber Removal (Tree Measurement) Specifications	30 – Scaled 28 – Tree Measurement
Appendix C – Road Maintenance Requirements and Drawings	24

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Service Contract Act – Forestry - Wage Determination #1977-0727, Revision #67 dated 04/26/2022	4
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52. 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov>
<https://www.acquisition.gov/agar>

I. FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1)

52.214-34 Submission of Offers in the English Language (APR 1991)
52.214-35 Submission of Offers in U.S. Currency (APR 1991)
52.232-13 Notice of Progress Payments (APR 1984)

53. TYPE OF CONTRACT

The Government contemplates award of Blanket Purchase Agreements resulting from this solicitation.

54. 52.233-2 SERVICE OF PROTEST (SEPT 2006)

- (a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from issuing Contracting Officer.
- (b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

END OF ADDENDUM TO FAR 52.212-5

55. FAR 52.212-1 INSTRUCTIONS TO OFFERORS — COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) **North American Industry Classification System (NAICS) code and small business size standard.** The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern which submits an offer in its own name, but which proposes to furnish an item which it did not itself manufacture, is 500 employees.

(b) **Submission of offers.** Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the [SF 1449](#), letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;

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(4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;

(5) Terms of any express warranty;

(6) Price and any discount terms;

(7) "Remit to" address, if different than mailing address;

(8) A completed copy of the representations and certifications at FAR [52.212-3](#) (see FAR [52.212-3](#)(b) for those representations and certifications that the offeror shall complete electronically);

(9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the [SF 1449](#), include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) **Period for acceptance of offers.** The offeror agrees to hold the prices in its offer firm for thirty (30) calendar days from the date specified for receipt of offers unless another time period is specified in an addendum to the solicitation.

(d) **Product samples.** When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during pre-award testing.

(e) **Multiple offers.** Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR [subpart 4.10](#)), or alternative commercial products and commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) **Late submissions, modifications, revisions, and withdrawals of offers.**

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

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(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(2)(ii) However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) **Contract award (not applicable to Invitation for Bids).** The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) **Multiple awards.** The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1) (i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained for a fee by submitting a request to-

GSA Federal Supply Service Specifications Section
Suite 8100 470 East L'Enfant Plaza, SW
Washington, DC 20407

Telephone (202) 619-8925
Facsimile (202) 619-8978.

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(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a single copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained free of charge by submitting a request to the addressee in paragraph (i)(1)(i) of this provision. Additional copies will be issued for a fee.

(2) Most unclassified Defense specifications and standards may be downloaded from the following ASSIST websites:

(i) ASSIST (<https://assist.dla.mil/online/start/>).

(ii) Quick Search (<http://quicksearch.dla.mil/>).

(iii) ASSISTdocs.com (<http://assistdocs.com>).

(3) Documents not available from ASSIST may be ordered from the Department of Defense Single Stock Point (DoDSSP) by-

(i) Using the ASSIST Shopping Wizard (<https://assist.dla.mil/wizard/index.cfm>);

(ii) Phoning the DoDSSP Customer Service Desk (215) 697-2179, Mon-Fri, 0730 to 1600 EST; or

(iii) Ordering from DoDSSP, Building 4, Section D, 700 Robbins Avenue, Philadelphia, PA 19111-5094, Telephone (215) 697-2667/2179, Facsimile (215) 697-1462.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) **Unique Entity Identifier.** (Applies to all offers that exceed the micro-purchase threshold and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR [subpart 32.11](#)) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) **Debriefing.** If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors when any ranking was developed by the agency during source selection.

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(4) A summary of the rationale for award;

(5) For acquisitions of commercial items, the make and model of the item to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

ADDENDUM TO FAR 52.212-1

The following clause(s) are hereby incorporated by reference or full text as appropriate:

56. INSTRUCTIONS FOR SUBMISSION OF OFFERS AND OTHER INFORMATION

(a) General Instructions - Proposals submitted in response to this solicitation shall be furnished in the following format:

- (1) Proposals shall be submitted as two documents - a technical proposal **and** a price proposal. Each part shall be separate and complete in itself so that evaluation of one may be accomplished independently of the other. The price proposal shall be submitted with the solicitation forms, no breakdown of the unit price is required. The technical proposal must not contain reference to cost.
- (2) Offerors are cautioned that sufficient and detailed information must be presented in their technical proposals to enable the Government to evaluate their proposals fully in accordance with the evaluation and award criteria contained herein. The Government is not obligated to ask for additional information and in the absence of appropriate information, the proposal will be rated deficient.
- (3) The Government will evaluate proposals in accordance with FAR Clause 52.212-2 "Evaluation – Commercial Products and Commercial Services (NOV 2021)" evaluation criteria as set forth herein.
- (4) Offerors shall submit their proposal(s) in the following format:
 - (i) Completed, signed offer (the solicitation package, pages 1, 3 through 7, and certifications numbered 57 through 64).
 - (ii) Technical Proposal/Documentation (Benefit to the Local Community and Past Performance information).
 - (iii) In addition to a successful firm's response to the solicitation, responses to all Evaluation Factors excepting Relevant Past Performance will be incorporated into the resulting BPA by reference at time of award and retain the full force and effect as all of the other contractual terms and conditions hold therein.

(b) Technical Proposal – Offeror's shall specifically address the following criteria in their Technical Proposal: Key Personnel, Equipment, Relevant Past Performance and Benefit to Local Community.

1. Key Personnel – Provide the resumes of the persons to be designated as the Overall Project Manager, Logging Supervisor, Slash Treatment Supervisor, and individual sub managers (such as individuals supervising sub-contractors). Please limit this information to no more than one page per individual.

2. Equipment – Describe the equipment you will use to accomplish all Work. Include make and model of proposed equipment. Please limit this information to one (1) page.

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3. Relevant Past Performance – Offerors shall submit past performance information for their firm and any proposed major subcontractors performing more than 20% of the work. Performance information may be obtained from references provided or from personal knowledge of the evaluators and PPS personnel.

The offeror and their subcontractors performing at least 20% of the work shall provide information for **EACH** reference and for **EACH** Pay Item for which the offeror is submitting pricing in the solicitation's SF 1449, Block 20 description that must have been completed during the past three years and all contracts and subcontracts in progress. The information should be completed primarily for contracts and subcontracts similar in nature and complexity to that required by this solicitation. Include contracts with the Federal Government, agencies of state, and local governments, and commercial customers. Offerors that are newly formed entities, without prior contracts as an entity, should provide contracts and subcontracts completed by all **key personnel**. Firms with no experience in the type of work described may show similar type projects which demonstrate their ability to perform in a timely manner, experience, and past performance of their employees, or their work as a subcontractor.

The offeror may provide information on problems encountered on the contracts and subcontracts listed and the corrective actions taken to resolve those problems. The Government may obtain information from existing contract files. Because discussions may not be held, the offeror may refute any problems in the original offer.

Each offeror will be evaluated on their performance under existing and prior contracts of a similar nature. Performance information will be used as an evaluation factor against which offerors' relative rankings will be compared to assure best value to the Government. The Government will focus on information that demonstrates quality of performance relative to the size and complexity of the procurement under consideration. The Government may contact references beyond those identified by the offeror to obtain additional information for use in both the responsibility determination and in further evaluation of the offeror's past performance.

Note: If the contractor does not provide past performance information or indicate a lack of Past Performance with its offer, the Contracting Officer need not pursue further information if it is clear that the offeror's price is not competitive.

The Office of Management and Budget (OMB) has authorized Federal agencies to collect past performance information under OMB clearance number 9000-0142.

4. Benefit to the Local Community – Explain how you will recruit and utilize labor, subcontractors, and other workforces from those counties adjacent to the National Forest or groups of National Forests.

- (A) Describe how and to what degree hiring or training of local residents as employees or as subcontractors would be accomplished in terms of retention, expansion, or creation of employment or training opportunities.
- (B) Describe how and to what degree materials, supplies, lodging, meals, or incidentals would be purchased within project areas.
- (C) Describe how any materials removed from Forest Service lands would be marketed and utilized in the project area. Include contributions to the development of biomass energy, integrated utilization, and/or value-added products for an existing market or emerging market (if applicable)

5. Cost/Price – A firm's completion and submission of all pay items for a given National Forest or group of National Forests of the subject solicitation's **Standard Form 1449 (Pages 1, 3 through 9)** constitutes the fulfillment of the Government's price proposal requirements under this solicitation.

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57. FAR 52.212-2 EVALUATION — COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

The offeror's proposal shall be in the format prescribed and shall contain a response to each of the areas identified, which affects the evaluation factors for award. The Government will determine best overall value on the basis of the factors described below.

1. **General.** Proposals will be evaluated on the basis that the following technical factors are in descending order of importance whereby each factor is more important than the next: Relevant Past Performance being moderately more important than Key Personnel/Equipment and Benefit to Local Community. When combined, these technical evaluation factors are **approximately equal to cost or price.**

2. **Key Personnel.** The Government will evaluate the **key personnel** subfactor by considering the experience of identified key personnel, including number of similar, successfully completed projects.

3. **Equipment.** The Government will evaluate the **equipment** subfactor by evaluating the suitability and adequacy of proposed equipment to be used on this contract.

4. **Relevant Past Performance.** Past performance is a measure of the degree to which an offeror, as an organization, has: (1) satisfied its customers, and (2) complied with federal, state, and local laws and regulations. The Government will inquire about the following elements, which are **all of equal importance** in relation to each other, (1) quality of the offeror's work; (2) customer satisfaction; (3) timeliness of the Firm during performance and the final completion of the project; and (4) overall business relations.

- (A) **Quality of Services:** Demonstrated ability to perform services identified in the solicitation's SF 1449 techniques in accordance with contract specifications. Conformance to good standards of workmanship.
- (B) **Customer Satisfaction:** Satisfaction of end users with the Contractor's completed products and services.
- (C) **Timeliness of performance:** Compliance with delivery schedules; reliability; responsiveness to technical direction, no assessment of liquidated damages.
- (D) **Business relations:** Effective management; ability to manage projects involving subcontracts; good working relationship with the Contracting Officer and technical representatives; reasonable/cooperative behavior; flexibility; effective contractor recommended solutions; businesslike concern for Government's interests.

Government evaluators may avail themselves of various federal, state, and local past performance databases. The Government may research offeror performance on any federal, state, local, and commercial contract performance of the offeror that is known to the Government, but not included on the submitted performance information. Additionally, the personal experience and evaluator knowledge of offeror performance may be utilized.

The Government will consider the relevance of past performance information obtained in relation to the scope of this procurement with respect to both similar efforts, and the length, scope, number, complexity, and diversity of contracts completed by the firm. Past performance, either positive or negative, which is considered by the Government to be more closely related to the scope of this effort will be given additional weight in the evaluation process.

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Offerors with past performance data will be evaluated in the same manner as all other evaluation factors; however, those offerors with no past performance data will be treated as an unknown performance risk and neither be evaluated favorably nor unfavorably. Therefore, offerors will receive credit for good past performance, lose credit for poor past performance, and neither receive nor lose credit for no relevant past performance.

5. Benefit to the Local Community. The Government will evaluate the methods proposed by each contractor for benefiting the local community. The evaluation will include a determination as to how realistic and achievable the proposed methods are with added consideration for the impact and magnitude to which the local community will benefit from their operations.

6. Cost/Price Evaluation Criterion.

- (A) The degree of importance of the price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based, or when the price is so significantly high as to diminish the value of the technical superiority to the Government.
- (B) The Government may award an Agreement on the basis of initial offers received, without discussions. Therefore, each initial offer should contain the offeror's best terms from a cost or price and technical standpoint. However, if considered necessary by the Contracting Officer, discussions will be conducted with only those offerors determined to have a reasonable chance for award.
- (C) The Government reserves the right to make an award to other than the lowest priced offeror or to the offeror with the highest non-price evaluation if the Contracting Officer determines that to do so would result in the greatest value to the Government.
- (D) **All pay items for a given National Forest or group of National Forests, as identified in the Standard Form (SF) 1449, must be priced in order to be considered for award for that Forest(s). For example, Items 2-12, 15-25, 30-40, 45-55, etc.**

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award. **The award will incorporate written information provided by the offeror(s) and utilized by the Government as the basis for award selection.**

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58. SINGLE OR MULTIPLE AWARDS

The Government may elect to award a single Agreement or to award multiple Agreements for the same or similar supplies or services under this solicitation.

59. FAR 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024) (DEVIATION FEB 2025)

[If Offeror Representations and Certifications are not complete in SAM the offeror shall submit a completed copy of the provision at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, with your offer. The full provision is available from <http://www.acquisition.gov/far/>.

If Offeror Representations and Certifications are complete in SAM, the offeror shall complete the following:]

(b)(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at [FAR 52.212-3](#), Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see [FAR 4.1201](#)), except for paragraphs .

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any. Write "None" if there are no changes needed to your online reps and certs.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(End of Clause)

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60. EMPLOYMENT OF ELIGIBLE WORKERS- WORKFORCE CERTIFICATION

Contractors are required to provide certification under this solicitation in compliance with the Migrant and Seasonal Agricultural Workers Protection Act (MSPA) and Farm Labor Contractor (FLC) Certificate of Registration requirements describing the workforce they will utilize to fulfill the contract requirements under this solicitation and any resulting contract. If the Contractor will supply workers under the H-2B Program, the Contractor is required to provide a copy of the Temporary Employment Certificate issued by DOL.

Subcontractors are bound by the same requirements for licenses and permits under this contract. If a Prime Contractor identifies a Subcontractor as part of their workforce to accomplish the work under this solicitation, the Prime Contractor shall submit the Subcontractor's signed certification with their response to the solicitation.

H-2B Workers: (<http://www.foreignlaborcert.doleta.gov/>)

☐

Company certifies it will not be utilizing H2B Workers under any resulting contract of this solicitation.

☐

Company will be utilizing H2B Workers (under any resulting contract of this solicitation. Provide a copy of Temporary Employment Certificate.) MSPA Workers: (<http://www.dol.gov/whd/mspa/>)

☐

Company certifies it will not be utilizing MSPA workers under any resulting contract of this solicitation.

☐

Certifies has valid FLC certificate of registration. (Attach a copy of current certification.)
Authorization includes:

☐

Transporting workers

☐

Driving

☐

Housing workers

☐

Company has applied for a Certificate of Registration on _____ .

Contractors not currently having obtained a certificate (for each partner if partnership) will be requested to furnish proof of having obtained a Certificate of Registration prior to award of contract. If the contractor does not provide the required Certificate in a reasonable timeframe, the contractor will not be eligible for the contract award. Partnerships must furnish proof of registration of their assumed business name, if any, with the State of registration.

State of _____ No. _____

Information about licensing requirements and procedures may be obtained from the following:

I, on behalf of said Company, certify to the above responses.

SIGNATURE:	DATE:
PRINTED NAME:	TITLE:

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61. FAR 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (AUG 2020)

(a) (1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see [52.209-7](#), if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) *Examples.*

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

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(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has ☐ has not ☐, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non-responsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

62. SIZE STANDARD AND NAICS CODE INFORMATION

The North American Industrial Classification System Code(s) and business size standard(s) describing the products and/or services to be acquired under this solicitation are listed below:

Contract line item(s): **ALL**

NAICS Code: **115310 Support Activities for Forestry**

Size Standard: \$34 Million for Support Activities for Forestry (Average annual receipts for the preceding three fiscal years).

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63. GOVERNMENT EMPLOYEES, FORMER USDA EMPLOYEES, AND USDA RETIREES

The offeror/quoter represents and certifies that—

- a) It ☐ is, ☐ is not a current Federal government employee.
- b) It ☐ is, ☐ is not a former USDA employee.
- c) It ☐ is, ☐ is not a retired USDA employee. If retired, give date of retirement: _____.
- d) It ☐ is, ☐ is not related by blood or marriage to a current Forest Service employee on the _____ National Forest. If so, list employee's name and

location: _____.

- e) It ☐ is, ☐ is not substantially owned or controlled by a former USDA employee or retiree.

64. TAXPAYER IDENTIFICATION

Quoter shall insert their Taxpayer Identification Number: _____

65. SAM UNIQUE ENTITY IDENTIFIER

Quoter shall insert their SAM Entity Registration ID number: _____

66. SYSTEM FOR AWARD MANAGEMENT (SAM)

Are you registered in SAM and is your registration current?

☐ Yes ☐ No

END OF ADDENDUM TO FAR 52.212-3

SUBMITTALS with your quote package

Fill out and return pages 1 and 3-5 in addition to all certifications numbered 61 through 65 (if you have filled out info in SAM, fill in only paragraph b1 and b2 in FAR 52.212-3 Representations and Certifications).

The contractor is required to submit specific information to the Government. Please read and respond accordingly and appropriately to all the requests for documentation.